



SPECIAL REPORT August 7, 2005 -- THE ISRAELI "ART STUDENTS/MOVERS MYSTERY" SOLVED.

publication date: Apr 11, 2007 | author/source: Wayne Madsen
[Previous](#) | [Next](#)

THE ISRAELI ART STUDENTS AND MOVERS STORY

By Wayne Madsen

The presence in the United States of a number of young Israelis, most of whom had specialized military and intelligence backgrounds, in the months prior to 911 is a subject that has received inadequate attention from the major U.S. media and government investigators. The activities of the Israelis fell into two main areas: the casing of the offices and homes of Federal law enforcement officials, U.S. military bases, and other sensitive sites by Israeli "art students" during 2000 and 2001 and the unusual activities of Israeli "movers" around sensitive areas during and after 911. These incidents occurred in tandem with the suspicious activities of other former Israeli military and intelligence officials in neighboring countries, including Canada and Mexico, after 911. In addition, a number of Israeli intelligence agents were apprehended abroad for passport violations and other illegal activities.

The possibility that the suspicious Israeli activity was linked to the movements of Al Qaeda cells cannot be brushed aside as merely coincidental. For example, a number of the Israelis arrested for suspicious activities involving selling bogus Israeli art and driving moving vans were concentrated in some of the same neighborhoods where a number of the 911 Saudi and other Arab hijackers lived and trained at flight schools.

Two internal U.S. government documents revealed that among the 120 Israeli "art students" who attempted to penetrate the security of dozens of Federal office buildings and who visited the homes of scores of U.S. law enforcement personnel during 2000 and 2001 were some who used addresses and mail drops in southern Florida and Texas near those used by a number of the 911 hijackers. The information came from a Drug Enforcement Administration (DEA) Report drafted in June 2001 on the activities of the art students and a Federal Bureau of Investigation (FBI) list of the hijackers and other terrorist suspects, accidentally released in early October 2001 on a Finnish government web site. The DEA memo specifically stated that the Israelis may have had ties to an "Islamic fundamentalist group."

As a journalist, it has become increasingly difficult since the 911 terrorist attacks to cover the more secretive aspects of the U.S. intelligence and law enforcement communities. Many government officials have readopted the famous World War II missive of "Loose Lips Sink Ships," in refusing comment on anything deemed sensitive. Journalists who rely on the Freedom of Information Act (FOIA) to obtain copies of documents also face unprecedented challenges. After 911, Attorney General John Ashcroft issued a memorandum that states his Justice Department will use its enormous legal might to defend any refusal by any government agencies to withhold information

requested under the FOIA.

Coming into possession of a sensitive Drug Enforcement Administration (DEA) report on the activities of Israeli "art students" was, therefore, a welcome surprise. DEA, the chief agency that investigates drug cartels, dangerous work under any circumstance, is traditionally very secretive about its investigations. However, some members of the agency, frustrated that their concerns were not being taken seriously by senior officials of the Federal Bureau of Investigation (FBI) and Justice Department, apparently decided to leak the report. Their decision was supported by the Immigration and Naturalization Service (INS), another agency involved with the DEA in the joint task force set up to investigate the Israeli "students."

Being presented with a document such as the DEA report, titled "Suspicious Activities Involving Israeli Art Students at DEA Facilities," posed unique problems in itself. For example, the document had to be verified as authentic and not a hoax. Many times, government agencies will merely state they "can neither confirm nor deny" the genuineness of leaked documents. However, in the case of the DEA report, confirmation of its genuineness came from the DEA in relatively quick fashion.

One amazing element of the story was the fact that a number of DEA, INS, and FBI agents had discovered, as had I, that several of the known addresses of the Israeli students were very close to those of the Al Qaeda terrorists and their supporters. These included addresses in Hollywood, Florida; Miami, Florida; and Irving, Texas. Speaking off-the-record, some of the agents told me that the fact that the Israelis and Al Qaeda were living in the same neighborhoods at the same time--January through May 2001--led the agents to believe the real mission of the Israelis was not to sell art at federal facilities but to spy on the Al Qaeda members.

As rock solid as the story about the true nature of the art students remains--it has had to face another, even more insurmountable problem than getting federal agents to talk. Immediately after the story appeared in *Intelligence Online*, *Le Monde*, and the Associated Press, the sizeable pro-Israeli lobby in the United States began to gear up for a counter punch. They had been through this in December 2001 when the Fox News Network, in a four part series by Carl Cameron, referred to Israelis being arrested and detained in the United States for espionage. Cameron also stated, "Evidence linking these Israelis to 911 is classified. I cannot tell you about evidence that has been gathered. It's classified information." No sooner had Fox put the story on its web site it was pulled down without explanation. A similar story on Houston's CBS affiliate, KHOU-TV, provided the following introduction:

"10/02/2001 - Fifteen People Arrested in March in Dallas, Suspected of Casing Federal Buildings. 11News reported how people claiming to be "Israeli art students" might be trying to sneak into federal buildings and defense sites, and even doing surveillance. In Dallas, the so-called students hit early this year at the city's FBI building, the Drug Enforcement Administration and at the Earle Cabell Federal building, where guards found one student wandering the halls with a floor plan of the building."[1]

When trying to access the full story on the TV station's web site, one receives the following message: "The page you requested could not be found." However, Channel 11 News' terrorism expert and former Defense Department analyst Ron Hatchett said the Israeli activity was "obvious surveillance" and "not a bunch of kids selling artwork." A Federal Protective Service memo, obtained by KHOU after Israelis were seen casing the Leland Federal office building in Houston, stated, "Federal sites have experienced an inundation of art solicitations at office buildings by students claiming to be selling Israeli art."[2]

Federal agents in Dallas were also concerned that the Israeli art students had other intentions. The

office manager for a Plano physician reported that after being told to leave, the Israelis kept returning to her building, which had a no soliciting policy. Channel 8 in Dallas reported that a number of Israelis were caught casing Federal buildings in Dallas and being involved in suspicious behavior in north Texas.[3]

The author's own colleagues reported that aggressive Israeli art students paid visits during late 2000 and early 2001 to the offices of the Electronic Privacy Information Center (EPIC) in Washington, DC and the headquarters of the National Defense Industrial Association (NDIA) in Arlington, Virginia.

Other suspected Israeli intelligence activity surrounding 911, including the arrest by New Jersey police near Giants Stadium of five Israelis who were seen celebrating, high-fiving, jumping up and down, and videotaping the collapse of the World Trade Center, was reported by the media. A New Jersey apartment resident named Maria, who declined to give her last name, told ABC News about several Israelis she saw celebrating the attack on the Twin Towers in her parking lot. The Israelis were later linked to an Israeli-owned office moving company called Urban Moving Systems headquartered in Weehawken, New Jersey at 3 West 18th Street. Another Urban Moving office was located on West 50th Street in Manhattan. Urban Moving's owner, Dominik Otto Suter, fled to Israel shortly before he was to be re-questioned by the FBI. [4] One of the five Israelis had a ticket for Bangkok and was due to fly out on September 13. [5] The New York Department of Transportation revoked Urban Moving Systems' license after it was discovered that its Manhattan business address was merely a post office box.

At 3:31 P.M. the FBI issued a nationwide alert called "Be On Lookout" or "BOLO" for the Israelis. Drafted by Special Agent Dave O'Brien, it read:

"Vehicle possibly related to New York terrorist attack. White, 2000 Chevrolet van with New Jersey registration (JYJ 13Y) with 'Urban Moving Systems' sign on back seen at Liberty State Park. Jersey City, NJ, at the time of the first impact of jetliner into World Trade Center." [6]

According to FBI sources, Urban Moving Systems and the activities of its employees on 911 did not sit too well with one member of the FBI's New York Joint Terrorism Task Force, Special Agent Michael Dick. He pursued the Israeli angle but soon found himself transferred to Karachi, Pakistan to help rescue *Wall Street Journal* reporter Daniel Pearl who had been kidnapped by Al Qaeda functionaries. There was one hitch. The FBI was already aware that Pearl had been brutally murdered by his captors.



Urban Moving Systems Weehawken, NJ bomb making and anthrax storage warehouse.

Moments after Maria felt the ground shake from the impact of the first plane into the World Trade Center and she received a phone call from a neighbor to look out her window at the southern Manhattan skyline, she noticed a white Chevy van parked in the lower parking lot with three of the five men in the van jumping on the roof of the vehicle and videotaping each other with the carnage in the background. Maria was also shocked that the men were celebrating the horrific scenes across the Hudson River. After writing down the license plate number of the van, Maria and her husband Pat phoned the police. [7]

Subsequently, Information Spectrum, Inc. (ISI) of Cherry Hill, New Jersey, a subsidiary of the Fairfax, Virginia-based defense contractor, Anteon, took over the operation of the Jersey City police computer system that handled all incoming emergency phone calls on September 11. The system had been maintained by Larimore Associates, a company that specializes in archiving police emergency calls. However, Larimore's contract was abruptly canceled by Jersey City authorities and awarded to Information Spectrum after the sudden death from a heart attack of Jersey City's first African-American mayor, Democrat, Glenn D. Cunningham, himself a former Jersey City police officer. According to Jersey City Police officials, after the emergency call system was changed from a Wang to a Windows environment, 8000 emergency 911 system calls registered on September 11 were scrubbed from the archives. In fact, archives dating back to 1989, including those dealing with the 1993 bombing of the World Trade Center, were similarly affected. Information Spectrum's running of the computer system resulted in a number of server crashes. When Larimore volunteered to help recover the lost data, there was no response from the police department. [8] Some Jersey City police sources speculated the change from Larimore to ISI/Anteon was prompted by orders from Trenton and the administration of Governor James McGreevey. They termed the changeover as "political." Governor McGreevey resigned in 2004 after it was discovered he had an alleged gay relationship with his chief of Homeland Security, Golan Cipel. An Israeli citizen, Cipel, a former diplomat assigned to Israel's Consulate General in New York City, was thought by many intelligence experts to be a junior Mossad case officer who lured McGreevey into a "honey trap."

[Additional FBI files on "Dancing Israelis."](#)
and [Follow-up incidednt reports](#)

Jersey City was a major base of operations for the 1993 World Trade Center attack. The

Ryder van used in that attack was rented from a Jersey City rental agency. As for the 911 attacks on the World Trade Center, there were no records of a call by Maria or any other witness to the Israeli activity in Maria's building parking lot or at Liberty State Park. The only call remaining in the system was a late night call on September 11 about a suspicious vagrant in a south Jersey City neighborhood.[\[9\]](#)

However, there was a call placed to the Jersey City Police Department that claimed "Palestinians" in Arab clothes were seen celebrating the attacks. Although the Jersey City Police discovered their 911 system tapes on September 11, 2001 disappeared from their servers and archives after ISI took over the contract, some tapes implicating "Arabs" found their way into the hands of WNBC-TV in New York in June 2002. WNBC played transcripts of 911 calls from the Jersey City Police:

Dispatcher: Jersey City police.

Caller: Yes, we have a white van, 2 or 3 guys in there, they look like Palestinians and going around a building.

Caller: There's a minivan heading toward the Holland tunnel, I see the guy by Newark Airport mixing some junk and he has those sheikh uniform.

Dispatcher: He has what?

Caller: He's dressed like an Arab.[\[10\]](#)

It is clear that the Jersey City Police Department's 911 call tapes were manipulated to delete any calls that might implicate the Israelis. The one call provided to WNBC was clearly an attempt at a "false flag" operation implicating "Palestinians" wearing "sheik uniforms" as the culprits in at least one of the white vans driven by Israeli "movers" on the morning of September 11.

After the van was traced to the Israeli moving company, the BOLO went out for the arrest of the vehicle's driver and passengers. An East Rutherford policeman directing traffic away from the closed Lincoln Tunnel on Route 3 East noticed the van was driving slowly on the service road towards the tunnel. The tag of the vehicle was only off by one letter from what was contained in the [BOLO \(JRJ 13Y\)](#) and the front New Jersey plate had been removed. It is very possible that to confuse the police, the Israelis were using NJ plate JRJ 13Y as the rear tag on two white vans – the one sighted in Liberty State Park and the other in Maria's apartment building parking lot. In fact, local police reported a number of white van sightings during September 11, with a number of them phoned into the police. Maria told ABC News she phoned tag number JRJ 13Y to the Jersey City Police after seeing the Israelis driving in a white van celebrating the first plane's impact, while Liberty State Park witnesses said the same tag number -- JRJ 13Y -- had been passed to the police and FBI after a white van with "celebrating Arabs" had been chased from the park by the park's chief ranger after the first plane impact.[\[11\]](#) It was clear that officials of New Jersey's Department of Environmental Protection in Trenton, which has authority over the state's parks, ordered Liberty State Park officials not to talk to the media about September 11 and the Israeli van.[\[12\]](#)

[The East Rutherford Police report on the Israeli van states:](#)

"Officer assigned to Special Detail on Route 3 was rerouting traffic on Highway 3 East to Hwy 120 and 3 West. Lincoln Tunnel was shut down and officer was diverting traffic. Officer notified by dispatch of a National Broadcast to be on lookout for 2000 Chevy Van White, NJ tag JYJ 13Y. 3 to 4 occupants. Officer noticed van traveling at slow speed east towards Lincoln Tunnel on the Service Road with 2 occupants visible. Officer informed sergeant of possible match. No front license plate but JRJ 13Y tag may have one letter off from National Broadcast. Sergeant told officer to stop vehicle because van seen in Liberty State Park at time of first impact. Driver did not exit vehicle. He

fumbled with a black “fanny pack.” Officer removed driver and van was searched. County bomb squad and FBI notified. FBI Newark ordered occupants to be held for prints because occupants were seen in Liberty State Park at time of first impact. 5 individuals were detained. Vehicle registration and insurance card were obtained. Officer spoke to FBI Special Agents Robert F. Taylor, Jr., Bill Lloyd, and Dave O’Brien. Prior to transportation to NJ State Police Barracks at Giants Stadium, driver said, “We are Israelis, we are not your problem. Your problems are our problem. Palestinians are the problem.” [13]

After the Israelis were arrested they misrepresented their location to one of the arresting police officers, Scott DeCarlo, claiming they were driving on West Side Highway in Manhattan when the planes struck the Trade Center. Dogs provided by the Bergen County Police K-9 unit alerted to the presence of explosives in the van. The nearby Homestead Studio Suites Hotel was evacuated for several hours. Asked about the Israelis in the van being present at Liberty State Park at the time of the first World Trade Center impact, one East Rutherford officer responded, “sure they were there.”[14] Another confidential source told the Bergen County Record, “There are maps of the city in the car with certain places highlighted . . . It looked like they’re hooked in with this. It looked like they knew what was going to happen when they were at Liberty State Park.”[15] According to several Weehawken neighbors of the Urban Moving Systems warehouse, the FBI, upon searching the the warehouse, discovered fertilizer, other chemicals for making explosives, pipes, caps, and traces of anthrax. After anthrax was discovered, investigators wearing hazardous material suits went through the warehouse. Residents around Urban Moving Systems who had connections to the local police also reported that helicopters with infrared radar swooped in over the warehouse on several occasions.[16]

According to the ABC 20/20 report and echoing the East Rutherford police report, the van’s driver, Sivan Kurzburg, told DeCarlo, “We are Israeli. We are not your problem. Your problems are our problems. The Palestinians are the problem.”[17] The Israelis also reportedly told police they were tourists.[18] When the FBI developed the photos taken by the Israelis of the World Trade Center carnage, one photo depicted Kurzburg flicking a cigarette lighter in a celebratory manner with the burning buildings in the background.[19]



The Liberty State Park vantage point the [five Urban Moving Systems celebrants](#) had of lower Manhattan on the morning of September 11.

On the morning of September 12, the FBI canvassed the residents of the Israelis' apartment building, The Doric, in Union City. They asked the residents if they could identify photographs of the five Israelis.^[20] The three Newark-based FBI agents on the case were Robert F. Taylor, Jr., Bill Lloyd and Dave O'Brien, the same agents who questioned the van drivers arrested in East Rutherford. All have subsequently been transferred from the Newark Field Office. A Union City off-duty policeman, saw three suspicious people at Union Park next to the Doric Temple at the corner of 9th Street and Palisades Avenue in Union City. The three, who matched the description of other Israeli "false flag" teams, were filming New York City's skyline before the first plane hit the World Trade Center. The officer also witnessed the three high-fiving each other. The officer chased the celebrants on foot but was unable to apprehend them. The officer later reported the three headed into Jersey City by car.^[21]

Another van carrying explosives was stopped by police on an approach ramp to the George Washington Bridge from the New Jersey side. Police suspected the perpetrators were trying to blow up the bridge.^[22]

According to Jersey City police sources, another FBI agent, Monica Patton, investigated the activities of Israeli "movers" and four of the hijackers, Mohammed Atta, Marwan al Shehhi, and two Saudi brothers – Waleed M. and Wail Al-Shehri -- at the same video rental store in Jersey City. One of the videos the Saudi brothers rented was an HBO documentary on the 1993 bombing of the World Trade Center. Another video they rented was "The Towering Inferno." The video storeowner said his video rental records were later stolen after the FBI interviewed him and he told them about the Saudis' rental history. The Al Shehri brothers also purchased phone cards from the video store for special use in calling Dubai. The Jersey City intrigue does not stop with the Saudis and Israelis. Jersey City Police also reported that the business card of a Jersey City municipal government social worker had been found on Timothy McVeigh after his arrest for the bombing of the Murrah Federal Building in Oklahoma City in 1995.^[23]

After serving two and a half months in prison and after a barrage of official complaints from the Israeli government, the five Israeli "movers" (Kurzberg, his brother Paul Kurzberg, Yaron Shmuel, Oded Elner, and Omer Marmari) were released over the objections of the CIA and permitted to return home. However, when Jersey City police checked the Israelis' van they found \$4,700 hidden in a sock, two foreign passports and a Stanley-knife box cutter (the same brand used by the 911 hijackers). Paul Kurzberg, refused for ten weeks to take a polygraph and then flunked it when he did. His lawyer said his client once worked for Israeli intelligence in "another country."^[24] Jerusalem Mayor Ehud Olmert interceded twice with his good friend New York Mayor Rudolph Giuliani to have the Israelis released. On September 14, 2004, the five "dancing Israelis" filed suit against the United States in U.S. District Court in Brooklyn for wrongful arrest and imprisonment.

[FBI declassified and significantly redacted files on arrest of the "dancing Israelis."](#)

In their complaint, Silvan Kurzberg, Paul Kurzberg, Yaron Shmuel, Omer Gavriel Marmari, and Oded Oz Elner cited the following defendants:

JOHN ASHCROFT, Attorney General of the United States; JAMES W. ZIGLAR (Former Commissioner of the Immigration and Naturalization Service); MICHAEL ZENK (Warden of the Metropolitan Detention Center); DENNIS HASTY (former Warden of the Metropolitan Detention Center) KATHLEEN HAWK SAWYER (former Director of the Federal Bureau of Prisons); LINDA

THOMAS (former Associate Warden of Programs of the Metropolitan Detention Center); ROBERT MUELLER (Director of the Federal Bureau of Investigation); KEVIN LOPEZ (believed to be an employee of the Federal Bureau of Prisons); S. CHASE (believed to be an employee of the Federal Bureau of Prisons); "JORDAN" (believed to be an employee of the Federal Bureau of Prisons, whose true first and last names are unknown to the plaintiffs, who believe they heard him being called "Jordan"); MARIO MACHADO (believed to be an employee of the Federal Bureau of Prisons); WILLIAM BECK (believed to be an employee of the Federal Bureau of Prisons); RICHARD DIAZ (believed to be an employee of the Federal Bureau of Prisons); C. SHACKS (first name unknown first name unknown, believed to be an employee of the Federal Bureau of Prisons); SALVATORE LOPRESTI (believed to be an employee of the Federal Bureau of Prisons); STEVEN BARRERE (believed to be an employee of the Federal Bureau of Prisons); JON OSTEEN (believed to be an employee of the Federal Bureau of Prisons); J. MIELES (first name unknown, believed to be an employee of the Federal Bureau of Prisons); MICHAEL DEFRANCISCO (believed to be an employee of the Federal Bureau of Prisons); F. JOHNSON (first name unknown, believed to be an employee of the Federal Bureau of Prisons); CHRISTPHOR WITSCHER (believed to be an employee of the Federal Bureau of Prisons); MOSCHELLO (first name unknown, believed to be an employee of the Federal Bureau of Prisons); NORMAN (first name unknown, believed to be an employee of the Federal Bureau of Prisons); HOSAIN (first name unknown, believed to be an employee of the Federal Bureau of Prisons); MOUNBO (first name unknown, believed to be an employee of the Federal Bureau of Prisons); M. ROBINSON (first name unknown, believed to be an employee of the Federal Bureau of Prisons); TORRES (first name unknown, believed to be an employee of the Federal Bureau of Prisons) COUNSELOR RAYMOND COTTON (believed to be an employee of the Federal Bureau of Prisons); DR. LORENZO (first name unknown, believed to be an employee of the Federal Bureau of Prisons); LIEUTENANT BIRAR (first name unknown, believed to be an employee of the Federal Bureau of Prisons); LIEUTENANT BUCK (first name unknown, believed to be an employee of the Federal Bureau of Prisons); LIEUTENANT T. CUSH (first name unknown, believed to be an employee of the Federal Bureau of Prisons); LIEUTENANT GUSS (first name unknown, believed to be an employee of the Federal Bureau of Prisons); LIEUTENANT D. ORTIZ (first name unknown, believed to be an employee of the Federal Bureau of Prisons); LIEUTENANT J. PEREZ (first name unknown, believed to be an employee of the Federal Bureau of Prisons); UNIT MANAGER C. SHACKS (first name unknown, believed to be an employee of the Federal Bureau of Prisons); JOHN DOES 1-30, Metropolitan Detention Center Corrections Officers, "John Doe" being fictional first and last names, intended to be the corrections officers at the Metropolitan Detention Center who abused the plaintiffs and violated their rights, and whose identities are known to the defendants but at this time unknown to the plaintiffs; JOHN ROES 1-30, Federal Bureau of Investigation and/or Immigration and Naturalization Service Agents, "John Roe" being fictional first and last names, intended to be the corrections officers at the Metropolitan Detention Center who abused the plaintiffs and violated their rights, and whose identities are known to the defendants but at this time unknown to the plaintiffs.

A number of interesting facts are stated in the Israelis' complaint. It states that some of the Israelis were classified as being "of high interest" to the government's terrorism investigation, "Witness Security" and/or "Management Interest Group 155." They were "housed in one of the most highly restrictive prison settings possible, the Administrative Maximum Special Housing Unit ("ADMAX SHU") of the Metropolitan Detention Center ("MDC")." The government was also interested in the Israelis' possessions. The complaint states the government "confiscated personal identification, money, and valuable personal items" from the Israelis. In addition, the government searched the homes of the Israelis and confiscated additional personal items.

One intriguing complaint was that the U.S. government detained the Israelis precisely because they were Jewish Israelis. The court filing states: "Defendants and others have also engaged in racial,

religious, ethnic, and/or national origin profiling. Plaintiffs' race, religion, ethnicity, and/or national origin played a determinative role in Defendants' decision to detain them initially, to subject them to a blanket non-bond policy, to subject them to punishing and dangerous conditions of confinement, and then to keep them detained beyond the point at which removal or voluntary departure could have been effectuated . . ."

Silvan Kurzberg was required to provide a blood sample while in prison, an indication that federal authorities may have had some DNA evidence they wanted to match. At the time of their arrest, all the Israelis had plane tickets back to Israel. When they were first detained, the Israelis were not permitted to meet with a Rabbi. Later access to a Rabbi was granted under "severely limited" circumstances. Prayer books and a bible given to the Israelis by the Rabbi were inspected by prison guards. During their first two weeks of detention, the FBI prohibited the Israeli Consul in New York from meeting with the Israelis.

One of the most astounding claims of the Israelis was that the FBI, Bureau of Prisons, and Immigration and Naturalization Service did not understand the difference between Arab Muslims and Jewish Israelis. The complaint states: "The plaintiffs are Jewish Israelis, not Moslems, but due to the similarity of language and the geographical location of Israel in the Middle East, and the ignorance or lack of understanding of the Arab-Israeli conflict and the fact that Israel is an ally of the United States, the defendants mentally placed the plaintiffs in the same category as Moslems, and discriminated against them the same way." [25]

At around noon on September 12, 2001, Roy Barak, a former Israeli paratrooper, and Motti Butbul, both employed by Urban Moving Systems as drivers, were stopped by police near York, Pennsylvania. They were en route from Chicago to New York City. Police discovered Barak had an expired visa and Butbul had no work permit. FBI agents were soon on the scene and grew suspicious when a box cutter was found inside the truck. The FBI polygraphed Barak and showed him a picture of his five colleagues arrested in New Jersey and asked him why they were smiling. Barak responded that they were not smiling. The FBI thought Barak was a possible terrorist and a Mossad spy. The FBI was particularly interested if someone sent Barak to the United States and if, at the time, he held a security clearance in the Israeli army. Barak spent his second week in solitary confinement without a television, radio, or any books. [26]

Vince Cannistraro, the former operations chief for counter-terrorism for the CIA, said that a search of the CIA's national intelligence database turned up some of the names of Israelis arrested in New Jersey. He said a number of people in the U.S. intelligence community concluded that Urban Moving was a Mossad operation and the Israelis were pursuing Islamist radicals in the New Jersey-New York area and particularly in Patterson, New Jersey. Pauline Stepkovich, who lived across the street from Urban Moving, told ABC News that FBI agents removed about a dozen boxes and computers, enough to fill up two SUVs. Cannistraro told ABC News that the FBI was concerned that the Israeli movers had some advanced knowledge of the 911 attacks but failed to warn the United States. "The fear of some of the FBI investigators in this particular case was that this group had some advanced knowledge of what was going to happen on 911. And once they understood there was an Israeli connection--an Israeli intelligence connection--they became very disturbed, because the implication was that the Israelis may have had some advanced knowledge of the events of 911 and hadn't told us," Cannistraro said. [27] Israeli intelligence foreknowledge about the 911 attacks was confirmed by two senior-level intelligence officials at the CIA and FBI. [28]

In Washington, Israeli embassy spokesman, Mark Regev, dismissed the espionage charges,

claiming the excitement of the Israelis seeing the World Trade Center collapse was due to “youthful foolishness.”[29] A lawyer for one of the Israelis said his client denied celebrating the terrorist attack on the Trade Center, however, after the FBI developed their film it clearly showed three of the Israelis on top of the van “smiling and clowning around” with the buildings burning in the background.[30] The evidence bolstered what Maria and Pat told the police and proved that the Israelis lied to the police when they claimed they were in Manhattan during the attack.

The Jewish weekly newspaper, The Forward, reported that a top U.S. government official told it, “The assessment was that Urban Moving Systems was a front for the Mossad and operatives employed by it... the conclusion of the FBI was that they were spying on local Arabs.”[31] ABC 20/20 host Barbara Walters commented on how the story of the Israeli movers was received in the Arab world, “The story is that Israel knew more than it would like to admit about the terrorist attack in this country. It's a rumor, but in some Arab countries--including Saudi Arabia, which I visited earlier this year--even educated people told me that they believe it is absolutely true.”[32]

Perhaps the young Israelis were only mirroring the feelings of former Israeli Prime Minister Benjamin Netanyahu, who when asked how the 911 attacks would affect U.S.-Israeli relations, said, “It's very good... Well, it's not good, but it will generate immediate sympathy for Israel from Americans.” Bergen County Police Chief John Schmidig was not as serene. He said, “We got an alert to be on the lookout for a white Chevrolet van with New Jersey registration and writing on the side. Three individuals were seen celebrating in Liberty State Park after the impact. They said three people were jumping up and down.”[33]

It is no coincidence that both Fox News and KHOU-TV had to pull down their web stories on the Israeli art students (based on the exposés in *Intelligence Online* and *Le Monde*, Fox began referring to its original December 2001 story on its web site). According to a number of Washington journalists, any time an article critical of Israel appears in the U.S. press, reporters and editors can expect to hear from a Boston-based group called the Committee for Accuracy in Middle East Reporting in America or “CAMERA.” The Kafkaesque group makes no secret of its aggressive intimidation methods. Its web site states: “CAMERA systematically monitors, documents, reviews and archives Middle East coverage. Staffers directly contact journalists and publishers concerning distorted or inaccurate coverage... CAMERA members are encouraged to write letters both to the publication or network, and to the sponsors or advertisers... If corrections and improved coverage are not forthcoming, we publicize the faulty reporting and the journalist's refusal to admit error.”

As an example, CAMERA cited a *Washington Post* story that refuted the legitimacy of the DEA's investigation and report on the Israeli art students. The story by reporters John Mintz and Dan Eggen questioned the motive behind the DEA's report by claiming, without offering any proof, that the agent who wrote it was disgruntled. Moreover, there was more than one author of the report. Apparently, CAMERA's “fact checkers” were only interested in checking out stories with which they disagreed or found embarrassing.

Neither the *Washington Post* or CAMERA seemed all that much interested in a warning about the Israeli “art students” and their “aggressive” visits to the offices and homes of U.S. federal agents that was circulated in March, 2001 by the White House Office of the National Counterintelligence Executive. The warning stated:

“In the past six weeks, employees in federal office buildings located throughout the United States have reported suspicious activities connected with individuals representing themselves as foreign students selling or delivering artwork. Employees have observed both males and females attempting to bypass facility security and enter federal buildings.

If challenged, the individuals state that they are delivering artwork from a studio in Miami, Florida, called Universal Art, Inc., or that they are art students and are looking for opinions regarding their work. These individuals have been described as aggressive. They attempt to engage employees in conversation rather than giving a sales pitch.

Federal police officers have arrested two of these individuals for trespassing and discovered that the suspects possessed counterfeit work visas and green cards. These individuals have also gone to the private residences of senior federal officials under the guise of selling art.”[34]

The nature of reporting on Israeli espionage in the United States can result in sources drying up rapidly. In the case of the DEA, the spokesman who originally confirmed the veracity and validity of the DEA Report was suddenly sent away on “vacation.” Other DEA agents and employees of other Justice Department agencies began to seal their lips. Attorney General John Ashcroft refused on two occasions to comment on the DEA investigation. Congress was also unwilling to look into the matter. Asked why, a senior congressional staffer replied, “You’ve got to be kidding... This is an election year!” He was referring to the 2002 congressional elections.

Ashcroft was portrayed as “disinterested” in counterterrorism during the summer of 2001, according to internal FBI memos written by Acting Director of the FBI Thomas Pickard.[35] Ashcroft’s “disinterest” in terrorism did not affect his looking out for his own safety. At the end of July 2001, Ashcroft broke with precedence and flew in a private G-3 Gulfstream to go on a fishing trip to Missouri. Ashcroft had previously flown on commercial planes. When asked why Ashcroft did not fly commercial, the Justice Department said that because of a “threat assessment” by the FBI, Ashcroft would “travel only by private jet for the remainder of his term.” Neither the FBI nor the Justice Department would identify what the threat was, when it was detected or who made it. However, the FBI security detail for Ashcroft determined that the threat was critical enough for Ashcroft not to fly on commercial aircraft.[36]



The FBI ignored both the warnings about Israeli art students and Arab hijackers. The two groups’ paths crossed in a number of U.S. cities in 2000.

After the DEA Report was leaked, I met with a journalist colleague who was also covering the art student story and had high level contacts within the Justice Department and FBI. During our meeting at the Navy Memorial just across the street from the National Archives, he summed up the problem: the cover-up went right to the top and the primary culprits were John Ashcroft and FBI Director

Robert Mueller.

The Israelis were described in the DEA Report and other security advisories as being part of an “organized intelligence gathering activity.” According to the FBI list, the Arab terrorist and suspect cells lived in the same neighborhoods as the Israeli cells in Irving, Texas and Hollywood and Miami, Florida from Dec. 2000 to April 2001. In the case of Irving, the Israeli cell used a rental mailbox in a shopping center just one block away from an Arab suspect’s apartment. In Hollywood, the terrorists, including lead hijacker Mohammad Atta, the Egyptian who piloted American Airlines Flight 11 into the North Tower of the World Trade Center, used a rental mailbox drop two blocks from an apartment rented by an Israeli “art student” team leader.

If the Israelis were stalking the hijackers, they would have also likely known about their interest in the World Trade Center. Speaking at a press conference in Washington, DC on March 22, 2004, William Rodriguez, the President of the Hispanic Victims Group and a 20-year veteran employee of the World Trade Center, revealed that he spotted Mohand Al-Shehri (alias Mohammed al Shehhi), one of the terrorist hijackers of United Flight 175 that crashed into the South Tower of the World Trade Center, two and a half months before September 11. Rodriguez said he saw Al-Shehri, a Saudi citizen, casing the North Tower of the World Trade Center. Rodriguez’s comments were part of the press conference partly organized by family members of 911 victims. The family members were calling for a full accounting by members of both the Clinton and Bush administrations about what they knew about the Al Qaeda threat to hijack planes prior to 911.

Rodriguez was a building manager for the World Trade Center and he held the master key for the North Tower. He was the last survivor pulled by rescue workers from the rubble of the building after it collapsed.

Rodriguez said Al-Shehri asked him how many public bathrooms were in the building and, in retrospect, Rodriguez believed the terrorist was looking for ways to place additional explosives in the building prior to the airplane attack. Rodriguez also said as he was climbing the stairs to help rescue people after American Airlines Flight 11 struck his building he heard heavy equipment being moved around on the 34th floor, which was closed and locked for renovation. In the chaos, Rodriguez did not have time to open the doors to the 34th floor to find out who was there but he believed there might have been additional explosives placed inside the building. Rodriguez also claimed that while assisting evacuees he heard non-aircraft-related explosions coming from floors below his location on the 33rd floor. The former chief economist for the Bush Labor Department, Morgan Reynolds, believed the Bush administration’s story about the World Trade Center collapse was “bogus.” Reynolds, who was the director of the Criminal Justice Center at the National Center for Policy Analysis in Dallas and later professor emeritus at Texas A&M University, opined that “if demolition destroyed three steel skyscrapers [the Twin Towers and Building 7] at the World Trade Center on 9/11, then the case for an ‘inside job’ and a government attack on America would be compelling.” Reynolds added, “The government’s collapse theory is highly vulnerable on its own terms. Only professional demolition appears to account for the full range of facts associated with the collapse of the three buildings.”[37]

Moreover, Rodriguez passed along several of his tips about pre-911 surveillance of the World Trade Center to the FBI but he said the agency never bothered to talk to him. However, according to the August 6, 2001 President’s Daily Brief, the FBI was aware that suspected terrorists were conducting surveillance of buildings in New York. The White House revealed that prior to 911, the FBI interviewed two Yemenis it detained for taking photographs of buildings in Federal Plaza in New York City. The FBI released them after determining the Yemenis were “tourists.”[38] Yemen is the birthplace of Osama bin Laden and a number of Al Qaeda operatives hail from Yemen.

Of course, not everyone within the FBI was asleep at the wheel. Minneapolis Special Agent Coleen Rowley tried in vain to get a wiretap on Zacarias Moussaoui. Phoenix Special Agent Kenneth J. Williams reported flight training by Arab students connected to Bin Laden. John P. O'Neill, the FBI's top counterterrorism agent, constantly raised the problem of Saudi support for Al Qaeda, only to be rebuffed, and eventually, hounded out of the bureau by his superiors.

The internal DEA report from June 2001 dealt with attempts by teams of Israeli "art students" to penetrate the security of various Federal buildings and offices throughout the United States. The DEA refused to officially comment on the report but a high-level source within the agency reports that it was the product of a larger investigation conducted jointly by a DEA and Immigration and Naturalization Service (INS) Operational Task Force set up in 2000 specifically to investigate the Israelis.

A number of the art students, who claimed they were from either Bezalel University in Jerusalem or the University of Jerusalem, said they answered ads in Israeli newspapers but could not give details of the identities of their bosses when interviewed by Federal agents. A number of the male and female art students, who were mainly in their early to mid 20s, had recently served in Israeli military and intelligence service, according to the report. Their activities were concentrated during the February-March 2001 time frame. More important, there was no University of Jerusalem and Bezalel said it had no record of any of the students having ever been enrolled there.

The DEA compiled an extensive list of the Israeli art students as an appendix (Indexing Section) to its report [LNU means "last name unknown"]:

"INDEXING SECTION:

1. BLAIN, Gat NADDIS negative, occupation: Israeli art student, sold painting to DEA employee in Dallas, TX on 01/04/2001 (Identified in paragraph 22)
2. FREIDMAN, Shabar NADDIS - Negative driver's license (#6728447), ID (#033056433)
3. AVRAHAM, Gerzon Ofir NADDIS - Negative. DOB (08/12/77), Israel passport (#6315574), Israeli Ministries of Transport ID (#034193615)
4. L.N.U., Shabar NADDIS - Negative
5. BARAM, Lior NADDIS - Negative. Florida driver's license (#B650-520-76-047-0), 10733 Cleary Blvd., #206, Plantation, Florida, 33324-0000, (DOB 02/07/76), 5'9", dark eyes and black hair
6. COHEN, Hammutal NADDIS - Negative DOB (01/29/62), Israeli passport (#6077838), Immigration departure (#41060016307 02/12/01), 5'8", 145 lbs.
7. RUBINSTEIN, Itay NADDIS - Negative DOB (01/17/79), US, visa (#39127358), date of entry 12/23/00, Israeli passport (#39127358) [sic, see visa], 6'0", 165 lbs.
8. AHARON, Ohad NADDIS - Negative
9. SEGAL, Yafit NADDIS - Negative
10. TOV, Yaniv Sheni NADDIS - Negative DOE (06/02/74) NADDIS negative

11. DOR, Sahlev NADDIS - Negative DOB (08/08/77) NADDIS negative AJ
12. GROSS, Hagit NADDIS - Negative DOB (09/30/78), Israeli passport (#5111696)
13. SHLOMO, Rony NADDIS - Negative approximately 21 yoa
14. KOCHAVI, Inbar NADDIS - Negative Israeli passport (#7674731)
15. DRORE, Rani NADDIS - Negative approximately 27 yoa
16. YOCHAI, Legum NADDIS - Negative 13 753 SO 90th Ave., Mami, Florida 33176
17. MEYTAL, Cohen NADDIS - Negative. Address: c/o Calmanovic, 3575 N. Beltline Rd., P.O, Box 316, Irving, Texas 75062. Addressed used by Michael Calmanovic, identified below
18. SISSO, Rosie NADDIS - Negative.
19. BURKHOLDER, Seth Thomas NADDIS - Negative. 3329 Bartlett Rd., Orlando, Florida, 1995 white Nissan pickup bearing Florida license plate D36-TTQ.
20. L.N.U., Elsa NADDIS - Negative.
21. SMITH, Travis Wayne NADDIS - Negative. white male, DOB (11/09/74), FBI No. 530083DBS (Assault - Domestic Violence) address: 615 S. Hardy, 4210, Tempe, Arizona
22. ESTRADA, Ramon Hispanic male, NADDIS - Negative. DOB (07/26/63), arrested 12/82 "processing marijuana for sale," 5/95 "transport/sell narcotics," 7/95 "transport/sell narcotics, adult giving minor narcotics," 8/95 "domestic violence." FBI No. 7643 5FAG, CASID No. CA07401218, WASID No. WA17692473
23. GILOR, Yaniv Zacoravich NADDIS - Negative. registered owner of a 1997 Chevy van in San Diego, CA
24. MENDEL, Leviella NADDIS - Negative. 83 77 Tamar Drive, #37, Columbia, Maryland, DOB 10/29/75, Maryland driver's license #M-534-514-009-032, 5'7", 150 lbs. Additional inquiries revealed MENDEL has a new residential address, 4733 Haskell Ave., #46, Encino, California.
25. SILVER, Danny NADDIS - Negative. (NFI)

The Tampa, Florida District Office identified the following individuals (#26-942):

26. BENDALAK, Orit: NADDIS negative, DOB 10-28-78, WF, POB Israel, 5'7", 140 lbs., brown hair, brown eyes.
27. BEZALEL ACADEMY OF ARTS AND DESIGN: NADDIS negative, Jerusalem, 011-972-2-589-3333, www.bezalel.ac.il.
28. COHEN, Eli: NADDIS negative, 701 S. 21 Ave. #207, Hollywood, FL 33020, DOB 11/04/1977, FL DL C500-200-77-404-0, State of Israel Ministry of Transport card number 03379722
29. HARARI, Ilana: NADDIS negative, W/F, DOB 4-29-79, 9-29-79, 2-9-79, 14 Jerico Itolon Israel,

attends University of Jerusalem, 5'3", 90 lbs., brown hair, blue eyes, tattoo of sun on right foot.

30. KENDEL, Rachel: NADDIS negative, White/Female, State of Israel Ministry of Transport card number 7095201 and 034807727, Israeli passport number 6614254.

31. KUZNITZ, Keren: NADDIS - Negative. 1818 E. Oakland Park Blvd. #98, Fort Lauderdale, FL 33306, DOB 02/09/1979, 5'5"; FL driver's license: K253-500-79-549-0, State of Israel Ministry of Transport card number 7121535 and 035721844.

32. L.N.U, Nadav NADDIS - (NFI)

33. L.N.U., Tom NADDIS - Negative. White, male. Address: Hollywood/Ft. Lauderdale, Florida. Reportedly sells artwork to Israeli art students.

34. MARZIANO, Assaf or Asaf NADDIS negative, DOB 2-4-78, state of Israel Ministry of Transport # 034086959, passport #552306S, POB Israel, WM, 5'7", 150 lbs,

35. MATATIA, Keren: NADDIS negative (NFI)

36. OSHRA, Sussie: NADDIS negative. (NFI)

37. SASSOON, Sarah Minna: NADDIS negative, 2916 Pierce St., 94, Hollywood, FL 33020, DOB 11/8/1978, FL DL# S250-793-79-908-0.

38. SELLA, Livnet: NADDIS negative, DOB 12/24/1978, State of Israel Ministry of Transport number 7023400 and 036208023, International Student Identity card number S972-204-776-601.

39. SERFATY, Hanan, aka Hanane SARFATI: NADDIS negative, 4220 Sheridan St., #303, Hollywood, FL 33.021, and 701 S. 21 Ave., Hollywood, FL, DOB 06/03/1977, 6', FL DL S613-320-77-203-0, registered owner of red mini-van FL tag # U71 DLD, phone number (954) 478-1006, cellular phone number (954) 478-0961.

40. SIMON, Michael: NADDIS negative, w/m, 11-23-78, Aliebenliezel 82, Jerusalem, telephone number 97226768256, Israeli passport no. 8660008, POB Jerusalem, 6'1", 180 lbs., black hair, brown eyes.

41. VAKSHI, Inbal: NADDIS negative aka Bella POLLCSOON, State of Israel Ministry of Transport License number 7098663 and 036444842, International Student Identity Card number S972-204-775-487, DOB 02/03/1979.

42. ZAGURI, Oshirt: NADDIS negative, 701 S. 21 Ave., 4205, Hollywood, FL 33020, DOB 07/11/1977, 5'6", FL DL #Z260-640-77-75 1 -0..

43. WEISFELNER, Odfe NADDIS - Negative. (NFI)

44. KEDEM, Guy. NADDIS -Negative. This female left a business card stating EAG-Guy Kedem, European Art Group, Oil Paintings; phone number (720) 581-7076; Fax number (303) 336-7006. The (720) number is unlisted and the (303) number is a fax number for Heritage Creek Apartments, 650 South Dahlia Circle, Denver, Colorado. (NFI)

The following individuals were identified by the Ft. Meyers, Florida Resident Office (#45-48):

45. MEIRAV, Zwaig, NADDIS - Negative. w/f, thin build, short long dark hair, DOB: 2/9/76, US VISA control # 20003205620012, Israeli passport 97831088

46. MACHBUBI, Hilda, NADDIS - Negative. w/f DOB: 5/4/79, US VISA control # 2000397210011, Israeli passport # 6530284, FL ID #M211-320-79-664-0

47. SIMKIN, Nimrod, NADDIS - Negative. w/m, over 6' tall, curly hair, DOB: 9/2/77, FL DL# S525-620-77-3220

48. KEREN, Inbal, NADDIS - Negative. w/f, DOB: 7/17/79, US VISA control # 20001710300009, Israeli passport # 6082073

The following individuals were identified by the Richmond, Virginia District Office (#49-54):

49. KEDEM, Eran, NADDIS - Negative. w/m, Israel, dob 10/15/75, 5'11", 160lbs., 12990 SW 74th St., Pine Crest, FL, Israeli ID 4031820079, Israeli driver's license #651007

50. PERLAS, Limor NADDIS - Negative. (NFI)

51. ASE, Shiri NADDIS - Negative. (NFI).

52. KEMETCH, Omit, a.k.a. KIMCHY, Ornit, NADDIS - Negative. w/f, dob 02/04/74, passport 96814521

53. MER, Shmrt NADDIS - Negative. (NFI)

54. BOUZAGLO, Kobi, NADDIS - Negative. cellular telephone 1-888-321-6213 (NFI)

The following individuals were identified by the Montgomery, Alabama District Office:

55. VALANSI, Marcelo, NADDIS - Negative. dob 11/24/77, Argentina passport #26316660, 901 S.E. 1st Ave., #2, Gainesville, FL., 617 E. University Ave., Gainesville, FL., 1436 Washington Ave., Miami, FL., registered owner of 1984 GMC Custom Van, Florida tag T11YZX., Argentina DNI26316660 card 4190961, speaks English and Spanish, Tel # (352)378-1485 (Identified in Paragraph 6)

56. VALANSI, Roberto, NADDIS - Negative. father of Marcelo VALANSI. Salguero 2468, Apartment 15, Buenos Aires (NFI) (Identified in Paragraph 10)

57. VALANSI, Graziela, NADDIS - Negative. mother of Marcelo VALANSI, Salguero 2468, Apartment 15, Buenos Aires (NFI) (Identified in Paragraph 10)

58. SAGES, Ester, NADDIS - Negative. dob 9/30/77, Israeli passport 96470399, Attornet 161, New York City, NY., Hotel Carlton, New York City, NY (Identified in Paragraph 6)

59. SAGES, Elyahu NADDIS - Negative. (deceased), father of Ester SAGES, (NFI) (Identified in Paragraph 9)

60. SAGES, Marjalit, NADDIS - Negative. Mother of Ester SAGES (NFI) (Identified in Paragraph 8)

61. DARDIC, Vanina Erika, NADDIS - Negative. dob 3/5/78, Argentina passport #10581811, 901 S.E. 1st Ave., Gainesville, FL. . Argentina DN126473227 card #J8557, speaks English, Hebrew, and Spanish, girlfriend of VALANSI, citizen of Argentina and Israel (Identified in Paragraph 4)

62. DARDIC, Mario, NADDIS Negative. father of Vanina DARDIC (NFI) (Identified in Paragraph 9)

63. COHEN, Judith (maiden name) NADDIS - Negative. mother of Vanina DARDIC (NFI) (Identified in Paragraph 9)

64. GAVISH, Yael NADDIS - Negative. W/F Brown hair, Brown eyes, DOB: Oct 03, 1978. Citz: Israel Passport Number: 5013766 issued 12-03-92, expires 3-12-2002 US Visa number 20001818940002 Class B-1/B-2 issued July 05, 2000 Expires June 28, 2010.

65. BALHAMS, Meirav NADDIS - Negative. W/F Brown hair, Brown eyes, 5'03" DOB: 10-03-78 Citz: Israel. New York ED Card 4 140-614-039. Address: 354 Paterson Plank Road #1, Jersey City, NJ 07650

The following individuals were identified by the Orlando D.O. on May 3, 2001:

66. SEGALOVITZ, Peer - NADDIS Negative, White, male, Nationality: Israeli, DOB: 03-16-1974, POB Israel, Address: 8187 N. University Drive Apt. 4129, Tamarac, FL, entered the U.S. on B-2 class visa on January 17, 2001. Former officer in Israeli Special Forces 605 Battalion. Israeli Military ED # 5087989. Encountered May 3, 2001 at the Orlando D.O. Occupation: Israeli Art Vendor/Student. (Identified in Paragraph 96)

67. SEGALOVITZ, Dror - NADDIS - Negative. White, Male, Brother of Peer Segalovitz. ADD: Address 8187 N. University Drive, Apt. Nationality: Israel. Identified in Paragraph 98)

68. SABGUNDJIAN, Kathy - NADDIS: Negative. (626) 358-6453 (626) 256-1027

69. SAGIV, Akyuz Shmuel - NADDIS: Negative. White, Male, Israeli Passport # 8710426; DOB: 09-27-1976; POB: Maaloot, Israel; Entered US In New York; PN: 954712-2126. Associate of Peer Segalovitz and Dror Segalovitz. (Identified in paragraph #99).

The following were identified at the Volk Field ANG Base, Camp Douglas, Wisconsin:

70. WATERMANN, Tsvi NADDIS - Negative, AKA: Watermann, Zvi; white, male, DOB: June 7, 1979; Address: Pri Megadim 36 Mevaseret Zion, Isreal; Israeli Passport # 5728101 expiration date July 20, 2002; U.S. visa class B1/B2 expiration date March 20, 2011; Israeli Ministry of Transport driver's license, number 7046942.

71. KANTOR, Gal Kal NADDIS - Negative. white, male, DOB: Sep 08, 1975, Address: Kibbutz Eilon NO Western Galilee, Israel 22845; Israeli Passport 8261507 expiration date of Oct 20, 2004; U.S. B1/B2 visa, control number 19993358160012, expiration date of Nov 30, 2009.

The following were identified at Tinker AFB, Oklahoma:

72. OHANA, Yaron NADDIS - Negative. DOB: 02-04-78; POB: Haifa, Israel; Passport Number: 8421721 U.S. Visa Number:42252049.

73. KALFON, Ronen NADDIS - Negative. DOB: 04-13-76; POB: Haifa, Israel Passport Number :8168262; U.S. Visa Number: 3 5966019.

74. COHEN, Zeev NADDIS - Negative. DOB: 03-26-78; POB: Haifa, Israel, Passport Number: 5524033; U.S. Visa Number: 33331965.

75. TOPAZ, Naor NADDIS - Negative DOB: 06-08-77; POB: Haif, Israel Passport Number: 8081705; U.S. Visa Number: 33306515.

The following were identified by the Euless, TX Police Department on January 2nd, 2001, (refer to page 10):

76. LIFSHITZ, Gilad, NADDIS - Negative. W/M, DOB'09/17/1978

77. YANAY, Betzalel, NADDIS - Negative. W/M, DOB 09/04/1978

78. BITON, MoriN Miryam, NADDIS - Negative. W/F; DOB 07/14/1980

79. SASSON, Dana, NADDIS - Negative. W/F, DOB 08/10/1980

80. TOUYZ, Keren, NADDIS - Negative. W/F, DOB 08/20/1978

81. TZOR, Noam, NADDIS - Negative. previous owner of 1GAHG39K5SF112662, a 1995 Chev/Spt owned by Gilad LIFSHITZ of 7535 N. Beltline Rd, Apt 316, Irving, Texas 75062.

82. ROTEM, Sharon, NADDIS - Negative. described as a white male, DOB 03 -12-77, Israeli passport number 7948317, street address: 6023 Moshe Dayan, Holon, Israel.

83. MAIMON, Maya, NADDIS - Negative. Nationality: Israel. Israeli passport number as 5467894, US B1/B2 visa, DOB 26Dec1978, Issue Date: 18Oct2000, Expiration Date: 15Oct2010.

84.BADIHI, Nofar, NADDIS - Negative. Nationality Israel. Israeli passport number 5640993, DOB 21/03/1979 (sic), Place of Birth: Israel, date of issue: 05/12/1993, date of expiry (sic): 04/12/1995; US Visa B I/B2, issue date: 05Jul 1996, Expiry Date: 02JUL2006.

85. MARABOTTO, Marco NADDIS - Negative. Airline tickets were found reflecting the travel of Maya MAIMON and Marco MARABOTTO from DFW airport to Albuquerque, NM via Delta flight 2238 on March 24, 2001. Each ticket also reflected Delta flight 1944 from Las Vegas to DFW on April 1, 2001.

86. FERNANDEZS, Marco, NADDIS - Negative a.k.a. Marco Antonio FERNANDEZ De Castro Marabotto, DOB 13Apr1977, passport number 99390039611, Issuing State: Mexico; place of birth: Mexico, date of issue: 16Jul1999, expiration date: 16Jul2000.

87. REGEV, Gadi, NADDIS - Negative described as DOB: 17Dec1975, Nationality: Israel, passport number 5454338, visa type: B1/B2, issuing post: Tel Aviv, issue date: 05Nov1998, expiration date: 04Nov2008

88. ARTZI, Eyal, NADDIS - Negative Texas DL 19554509, and an expiration date of 06-27-07. address: 10334 Sandra Lynn Dr., Dallas, TX 75228. DOB 05-27-1977, commercial database shows

that ARTZI is the owner of a 1993 Plymouth Acclaim, Texas plate: J75FYB, date registered 08/21/2000, expiration date: 07/31/2001

89, SUSI, David, NADDIS Negative DOB 01/09/1975, boyfriend of Maya MAIMON

The following were identified by I&NS - Dallas:

90. ELDAD, Dahan, NADDIS - Negative. W/M Israeli, add: Oak IEH Apts. 1913 Estrada Parkway, #228, Irving, TX. Arrested by I&NS March 26 2001. (Identified in paragraph 39)

91. AFRICANO-Leon, Elsa Beatriz, NADDIS - Negative. W/F Nationality: Colombia Add: Oak Hill Apts. 1913 Estrada Parkway, #228, Irving, TX. Arrested by I&NS March 26, 2001. (Identified in paragraph 39)

92. LIVNI, Eran, NADDIS - Negative. W/M Israeli Add: Oak Hill Apts. 1913 Estrada Parkway, #228, Irving, TX Arrested by I&NS March 26, 2001. (Identified in paragraph 40)

93. OFEK, Aran, NADDIS - Negative. W/M Israeli, ADD: Oak Hill Apts. 1913 Estrada Parkway, #259, Irving, TX., father is 2-star general in Israeli Army. Arrested by I&NS March 26, 200 1. (Identified in paragraph 40)

94. GAL, Michal, NADDIS - Negative. W/F, Israeli, DOB 08/10/1979, POB Afula, Israel, INS A 75-894-941, ADD: Oak Hill Apts. 1913 Estrada Parkway, 4259, Irving, TX, Alt add.: 22 Palisade Terrace, Edgewater, NJ 01020 Tel: (201)224-0797 Arrested by I&NS March 26, 2001. (Identified in paragraph 40)

95. GAVRIEL, Noam, NADDIS - Negative. Nationality: Israel (Identified in paragraph 40)

96. KRITZMAN, Netta, NADDIS - Negative. Nationality: US Citizen (Identified in paragraph 40)

97. BAER, Ophir, NADDIS - Negative. W/K DOB 11/11/1956, Nationality: Israel, employed by AMDOCS, Ltd., add: 7845 La Cabeza Drive, Dallas, TX 75248, former add: 1125 East Campbell Rd., Richardson, TX, Tel: (972) 392-0473 & (214) 576-5741, SSN: 627-70-0979- (Identified in paragraph 42)

98. AMDOCS, Limited., NADDIS - Negative. add: 1390 Timberlake Manor Parkway, Chesterfield, MO, Tel: (314) 821-3242 (Identified in paragraph 43)

99. DOTAN, Boaz, NADDIS - Negative. 23 Abba Hillel, St. Ranat Gan, Israel, TX president of AMDOCS, Ltd. (Identified in paragraph 43)

100. WHITMAN, Beverly A., NADDIS - Negative. SSN: 400-88-4097, Treasurer of AMDOCS, Ltd. (Identified in paragraph 43)

101. CHRISTOFFEL, Gregory, NADDIS - Negative. SSN: 389-52-850, Secretary of AMDOCS, Ltd. (Identified in paragraph 43)

102. MOSHE, Eran, NADDIS - Negative. Israeli, I&NS A 75-894-459, averted by I&N on 03/26/2001, occup. Israeli art student (Identified in paragraph 44)

103. VAINSHTEIN, Julia, NADDIS - Negative. W/F Israeli, DOB 11/12/1978, POB: Russia, arrived

DFW on 03/27/2001, Assoc: Michael CALMANOVIC (Identified in paragraph 46)

104. BORENSTEIN, Dilka, NADDIS - Negative. Israeli, DOB 03/15/1979, POB: Israel, former Israeli Military Intelligence Officer, Assoc: Michael CALMANOVIC (Identified in paragraph 46)

105. NAVAR, Ofir, NADDIS - Negative. Israeli, DOB 09/02/1979, POB: Israel, former Israeli Military Demolition/Explosive ordnance specialist (Identified in paragraph 46)

106. CALMANOVIC, Michael, NADDIS - Negative. W/M, Israeli, DOB 09/06/1-975, POB: Israel, registered owner of TX: L44-CVD, add: 3575 N. Beltline Rd., Apt. 316, Irving, TX., alt. add: 312 Rochelle Rd., Irving, TX, alt. add: 1103 Hidden Ridge #3018, Irving, TX alt. Add: 1913 Estrada Parkway, Irving, TX 75061, alt. add: 11012 Ventura Blvd., Studio City, CA 91604 Tel: (214)882-5196, alt. add: 319 S. 177 Place, 4201, Seattle, WA 98148 Tel: (206) 244-7705, Tel: (214) 882-5196 / (214) 837-3574 / (469)446-1248 (214) 837-5996 (214) 876-1235 (217) 837-2056 former Israeli electronic intercept officer. Arrested by I&NS on April 4th, 2001, Posted \$50K bond, (Identified in paragraph 46)

107. SIMON, Itay, NADDIS - Negative. W/M, Israeli, DOB 02/27/1978, POB: Israel, former Israeli military, add: 1103 Hidden Ridge #3018, Irving, TX, alt add: California Associate of Michael Calmanovic. Arrested by I&NS April 4, 2001 for violation of status, posted \$50,000 bond. (Identified in paragraph 50)

108. LNU, Gilad, NADDIS - Negative. Tel: (214) 882-5196 (214) 876-1235 (Identified in paragraph 50)

109. LNU, Roy, NADDIS - Negative. Tel: (214) 837-3574 (Identified in paragraph 50)[39]

110. LNU, Mosh, NADDIS - Negative. Tel: (469) 446-1248 (Identified in paragraph 50)

111. LNU, Gil, NADDIS - Negative. Tel: (214) 837-5996 (Identified in paragraph 50)

112. LNU, Gasaf, NADDIS - Negative. Tel: (217) 837-2056 (Identified in paragraph 50)

113. ENGEL, Yoni, NADDIS - Negative. W/K DOB 09/14/1979, POB: Israeli Citizen, Israel, former company commader in Israeli military, arrived DFW on 03/28/2001, arrested by I&NS, St. Louis, MO on April 4th, 2001 (Identified in paragraph 51)

114. DAGAI, Yotam, NADDIS - Negative. DOB 04/06/1978, POB: Israeli Citizen, Israel, arrested by I&NS, St. Louis, MO on April 4th, 2001, arrived DFW on 03/28/2001. (Identified in paragraph 51)

115. ALROEI, Or, W/M DOB 08/08/1978, POB: Israeli Citizen, Israel, visited DEA St. Louis on 04/04/2001, Had Tel: (214) 882-5196 in his possession, Associate of Michael CALMANOVIC & Gil LNU. (Identified in paragraph 51)

116. RABINOVITZ, Eli, NADDIS - Negative. W/M, DOB 03/27/1979, U.S. passport E3701329518, 5'6", 175 lbs., brown hair (Identified in paragraph 51)

17. ADESA Golden Gate, NADDIS - Negative. add: 6700 Stevenson Blvd., Fremont, CA, registered owner of CA: 3LVAO1P (Identified in paragraph 51)

118. SADAN, Ben, NADDIS - Negative, W/M Israeli, approx. 24 yoa, Tel: (214) 562-1110, driver

of Israeli art students encountered April 4, 2001 in St. Louis, MO.

119. BEN DOR, Tomer, NADDIS - Negative. W/M Israeli, DOB 08/24/1975, occup: Computer software engineer, employer: NICE, former Israeli military officer for patriot missile defense (Identified in paragraph 55)

120. GLIKMAN, Marina, NADDIS - Negative. W/F Nationality: Israel, DOB 12/15/1972 (Identified in paragraph 53)

121. AKIVA, Ronen, associate of Marina GLIKMAN, occup: computer programm employer: RETALIX, former Israeli military officer (Identified in paragraph 55)

122. RETALIX, USA, NADDIS - Negative. add: 8081 Royal Ridge Parkway, Irving, TX, formerly known as Point of Sale, Limited. (Identified in paragraph 55).

123. DOR, Hillel, NADDIS - Negative. W/M Israeli, DOB 04/06/1971. Associate of Marina GLIKMAN (Identified in paragraph 55)

124. MILLER, Zeev, NADDIS - Negative. W/M Israeli, DOB 09/04/1971, occup: student/software engineer, employer: RETALIX Israel (Identified in paragraph 55).

125. SHAKED, Barry, NADDIS - Negative, CEO of RETALIX (Identified in paragraph 55).

On April 30, 2001, the Air Force issued a security alert from Tinker Air Force Base in Oklahoma City concerning a "possible intelligence collection effort being conducted by Israeli art students." DEA, INS, FBI, and Environmental Protection Agency (EPA) offices received similar alerts. The FBI office in New Orleans reportedly received a "Counter terrorism Advisory Report regarding suspicious activities around Federal buildings that related to Israeli students" in February 2000. The FBI also reported that an Israeli art student attempted to sell art at the residences of a U.S. District Judge and U.S. Magistrate in Baton Rouge, Louisiana. However, according to knowledgeable U.S. government sources, the FBI stayed away from the ongoing DEA-INS investigation for "political reasons."

The Israeli students operated in groups of between 4 to 8 individuals led by "Team Leaders." The team leaders controlled the teams' visits, drove the vehicles, and often had in their vehicles cameras and recording equipment. A number of the students had significant Israeli military experience in demolitions, explosives, and signals intelligence.

The team active in the Irving, Texas area (near Dallas-Fort Worth Airport) had links to the Chesterfield, Missouri-based Israeli communications software firm AMDOCS, which has an outsourcing agreement with Nextel; RETALIX, an Israeli company involved in software for the retail food industry; and NICE, an Israeli software engineering firm. The report cites Michael Calmanovic as the leader of the Irving group and states he "was a recently discharged electronic intercept operator for Israeli military." Calmanovic and his Israeli supervisor from California were arrested on April 4, 2001 in Irving, Texas, while vacating their apartment. The DEA report states Calmanovic used a mailbox drop at Mailboxes, Etc. located at 3575 N. Beltline Rd. Apt. 316, Irving, Texas. The FBI list dated 3 Oct. 2001, which was sent to national financial control authorities to freeze the accounts of the Saudi hijackers and their associates, states the address for suspect Ahmed Khalifa, also known as Almad Khafefa, as 4045 N. Beltline Rd. Apt. 314, Irving, Texas (Marbletree Apartments), just a few blocks from the Israeli mail drop.

There are a number of possible explanations about why the Israeli art students were living so close to the hijackers, especially in Florida where much of the terrorists' flight training occurred. One is that the Israelis had penetrated Al Qaeda with two cells comprising six Egyptian- and Yemeni-born Jews and that some of these agents posed as Israeli art students and were shadowing the Al Qaeda cells inside the United States and reporting their movements back to Mossad or a "cut out" intelligence unit in Ariel Sharon's office. Another explanation is that, like the Israeli "movers" in the New York-New Jersey area, the art students were providing an operational decoy and even material support to the hijackers. This theory arose when several Israeli art students in Canada were arrested for selling bogus Chinese art that they were passing off as Israeli. Two Canadian newspapers reported that U.S. counter-intelligence officials had warned Canadian authorities that the Israeli art students were funneling proceeds from the art sales to Islamist radical groups.[\[40\]](#) If the Florida and Texas Israeli art rings discovered prior to 911 were providing such financial support to the hijackers, it would explain why they closely located their mail drops so close to one another.

The involvement of the Israeli cells with communications companies raised serious concerns at the DEA and Justice Department, which were both using Israeli communications intercept software in their field operations. The DEA used a T2S2 intercept system provided by Comverse and JSI, two Israeli companies. Comverse was very close to the Israeli government, which reimbursed it up to 50 percent for its research and development costs. The FBI's Communications Assistance to Law Enforcement Act (CALEA) Implementation Office in Chantilly, Virginia was extremely concerned about the threat posed by Comverse's intercept system. But the worries of the Chantilly office and Federal Communications Commission (FCC) were overridden by the FBI's engineering office in Quantico, Virginia, which was supported by such contractors as Booz Allen Hamilton.[\[41\]](#) The nexus of art students, intelligence surveillance, and possible involvement in Ecstasy trafficking set off alarm bells at the highest levels of the DEA about the "art students." The reason was simple. T2S2 systems were used in what the DEA, Coast Guard, Customs, and other counter narcotics agencies called High Intensity Drug Trafficking Areas (HIDTAs) and associated wiretap centers and surveillance teams (STs).

The following internal DEA memo points to the worries about the Israeli systems:

From: [DELETED]

Sent: (DELETED)

To: [DELETED]

Subject: [DELETED]

I'm not sure what is meant by "Bottom line we should have caught it."

-----Original message-----

From: Raffanello, Heidi M.

Sent: Tuesday, December 18, 2001 3:04 PM

To: Zeisset, Dale M.

Cc: Newton, Otis L; Howard, JP

Subject: Comverse

As you may have heard Security Program is briefing the Administrator[42] tomorrow morning on the Israeli students investigation to include T2S2 Comverse and JSI. This was a result of the Fox network expose on Israeli counterintelligence activities. In our discussions about remote maintenance for JSI and Comverse, we realized that Comverse remote maintenance for field systems was not addressed in the C & A process. We will approach it in the similar fashion as we did in the JSI issue, however the foreign national factor doesn't apply. It remains unclear if Comverse personnel are security cleared and if so, who are they and what type of clearances are on record. If you have names, I can run their status in Personnel Security. If not, we will need to have Comverse and ST identify a short list of personnel that will require clearances. Obviously, if they have existing clearances with other agencies, this will facilitate the process. Due to the fact that at the time that we conducted the original interim CA for Comverse, the requirements differed than 2640.2D. Bottom line we should have caught it. Please let me know what the status of Comverse remote maintenance past efforts and what direction we need to go to resolve this for CA process. I will have Otis reach out to you to work this out. In light of the Administrator's concern for vulnerabilities to our T2S2 systems, we want to resolve this in time for the January 25th deadline for the review of the conditional.

As of this date, ISI is waiting for the Comverse equipment to arrive at ST so that a C-2 compliance test can be done. Any idea when ST will be in a position to have this done?

On March 4, 2002, Robert F. Diegelman, the acting Assistant Attorney General for Administration, issued a Justice Department memo reiterating that standing Justice Department Order 2640.2D, dated July 12, 2001, prohibited non-U.S. citizens from access to Department of Justice information technology. The order and memo reiterated the policy, "Foreign Nationals shall not be authorized to access or assist in the development, operation, management or maintenance of Department IT systems, unless a waiver has been granted by the Department CIO."

Small teams of Mossad agents found with eavesdropping equipment are nothing new to European or American law enforcement. In February 1998, five Israelis, three men and two women, were arrested in an apartment in the suburbs of Berne, Switzerland. The Israeli team managed to convince the police that they did not break and enter into the apartment but were there legally. The apartment was the residence of an Islamic activist. Four of the Israelis, two men and two women, were released. However, the fifth Israeli was later discovered with sophisticated surveillance equipment and a number of false passports. He was arrested, detained, and held for 65 days until Israel paid 3 million Swiss francs for his release with a promise he would return from Israel to stand trial. In July 2000, Isaac Bental, the cover name under which the Mossad allowed the Swiss to prosecute their agent, stood trial for espionage before the Swiss Federal Court. It was the first time a Mossad agent had gone on trial outside Israel.[43]

In December 1998, Cypriot police arrested two Israeli agents, Uri Argov and Yisrael Damari, for the illegal possession of communications intercept equipment and espionage. In March 1998, three Mossad agents aborted a wiretapping operation in London after they were tipped off to the police. The Mossad had operated illegally in London since 1987. That year, a furious Margaret Thatcher ordered Israel to close its Palace Green, Kensington Mossad station after its role in the assassination of a Palestinian cartoonist on a South Kensington street was revealed.[44]

In 1999, Shalom Shaphyr, an Israeli national having residences in Vancouver, Washington and Portland, Oregon was arrested by the FBI in Alexandria, Virginia for trying to buy computer intercept equipment from undercover FBI and Customs Service agents. Shaphyr was accused of

trying to illegally export the equipment to Vietnam. Shaphyr possessed a business visa that permitted him to enter and leave the United States at will.[45]

On May 31, 2005, it was announced in Israel that Israeli police and Interpol discovered a huge computer espionage ring involving a number of former Israeli intelligence officers and Israeli companies, including AMDOCS. Israeli police questioned AMDOCS computer security manager Eitan Shiron in the investigation that surrounded the use by over a dozen Israeli companies of a sophisticated hacking software program, called a Trojan horse, which bypassed the security controls on targeted computer systems.[46] The Israeli investigation also focused on four major Israeli telecommunications companies – Cellcom, Israel’s largest mobile phone company; two subsidiaries of the largest telecommunications company Bezeq Israel Telecom; mobile phone company Pelephone; and satellite television company Yes.[47] Scotland Yard also participated in the take down of the Israeli espionage ring, arresting dual Israeli-German citizen Michael Haephrati and his wife Ruth Brier-Haephrati in London on an Israeli extradition warrant. The Israeli couple was charged with “unauthorized modification of the contents of a computer” between December 12, 2004 and February 28, 2005.” Police said they wrote the Trojan horse computer program and provided it to a middleman. The Trojan horse in question was believed to be a derivative of the PROMIS software program illegally procured from Inslaw, Inc. in Washington, DC in the early 1980s and re-engineered by a number of intelligence agencies, including Israel’s, to perform computer espionage. Oddly, The Scotsman newspaper reported that Haephrati was questioned about a “separate matter” by detectives with Britain’s National Hi-Tech Crime unit on May 25, before his arrest on the Israeli warrant. The Haphraetis were remanded in the Bow Street Magistrates Court in London.[48]

Yet another possible Israeli intelligence link to electronic eavesdropping on the U.S. government was unearthed in the questionable awarding by the U.S. Congress of a wireless contract to a company owned by Israel. In 2000, LGC Wireless, a San Jose, California-based firm was considered in the lead to provide wireless connectivity for the U.S. House of Representatives. A year earlier, the House Administration Committee, then headed by Republican Representative Bill Thomas of California, granted LGC authority to conduct a design and security survey of the Capitol. In addition, the FBI and NSA reviewed LGC’s system design to ensure that foreign intelligence agencies could not penetrate the House’s wireless network. By December 2000, LGC had cleared its plans with the Capitol Architect, the House Information Resource Office, and the House Administration Committee. However, soon a new Israeli company named Foxcom Wireless, which changed its name to MobileAccess, began making an end run to secure the Capitol wireless contract. The new chairman of the House Administration Committee, Republican Representative Bob Ney of Ohio, clearly favored MobileAccess over LGC and in 2002, the Israeli company received the House wireless contract. Ney had a close political and financial relationship with GOP lobbyist Jack Abramoff, an extreme pro-Israeli political insider, who came under Justice Department investigation for questionable ties to Ney and House Majority Leader Tom DeLay. It was later revealed by The Washington Post that in 2001 MobileAccess donated \$50,000 to the Capital Athletic Foundation, which was run by Abramoff. In 2004, MobileAccess paid \$240,000 in lobbying fees to Greenberg Traurig, Abramoff’s former firm. The ranking member on the House Administration Committee, Democratic Representative Steny Hoyer of Maryland, said he was not kept fully informed of the wireless contract by either Thomas or Ney. LGC also cried foul when, in 2004, the U.S. Senate awarded MobileAccess a \$3.9 million contract to install a wireless network for the Senate.[49] As with the questions surrounding Information Spectrum Inc. abruptly replacing Larimore Associates as the Jersey City Police Department computer system contractor, similar complaints were aired by LGC. Ian Sugarboard, LGC’s CEO told The Hill newspaper, “. . . it appeared that lobbyists had exerted undue influence on the deal.” In addition, the House Administration Committee did not specify what security criteria MobileAccess had to meet. The FBI and NSA had previously approved LGC’s security countermeasures.[50]

Abramoff's strong connection to Israel and his influence in the Bush administration serve as yet another nexus between Israel, the Bush administration, and officials closely connected with Saudi Arabia. Top GOP adviser and Abramoff friend Grover Norquist, who was Abramoff's campaign manager when he ran for President of the College Republicans (a post also once held by Karl Rove), also maintained close links to a number of Saudis, some of whom were implicated in funding terrorism. Norquist was a cofounder of the Islamic Institute, co-located in Norquist's Americans for Tax Reform offices in Washington, DC. Norquist was a key player in the Bush 2000 outreach for Muslim and Arab voters. Sami al Arian, a University of South Florida professor, was an ardent supporter of Bush's Florida campaign to woo Muslim and Arab voters and his support likely helped tip the close election to Bush. The Islamic Institute was founded in 1999 with start up money from Kuwait; Qatar; other Arab countries; the founder of the American Muslim Council, Abdurahman Muhammad Al Amoudi; and two Islamic non-profits, the Safa Trust and the International Institute of Islamic Thought (IIIT). In 2002, as part of Operation Greenquest, the FBI raided Safa and IIIT for their role in financing international terrorism. Another one of Al Amoudi's groups, the International Relief Organization, was suspected of laundering Saudi money to terrorist groups. Although Arian and Al Amoudi were later charged by the federal government with supporting terrorist groups, they maintained close ties to the Bush campaign. Just a few months before the 911 attacks, Arian attended a June 2001 White house briefing with Karl Rove. Suhail Khan, the White House point man for arranging access to Bush by prominent Muslim-Americans and a former director of the Islamic Institute, was the son of the late imam of the Santa Clara, California mosque. The mosque had once hosted Dr. Ayman al Zawahiri, the second in command of Al Qaeda. Norquist and his friends were clearly part of a Saudi- and Wahhabi-funded political machine that sought to marginalize moderate Muslims in the United States. Agha Jafri, a Sh'ia leader in New York, said there was in the United States a Saudi "mafia" that was "intent on crushing moderate Sufi and Shiite Muslims in the United States." [51] In addition, Norquist's friend Al Amoudi was also discovered to have links to the 911 hijackers. German police files indicated that Al Amoudi met in the fall of 2000 Mohammed Belfas, an Islamic leader in Hamburg who once shared an apartment with Ramzi bin al-Shibh, a kingpin behind the 911 attacks. One of Belfas's colleagues, Agus Budiman, had accompanied Belfas on a scouting mission to Washington, DC in late 2000. Budiman pleaded guilty to helping Belfas obtain a phony identification card using a non-existent address in Arlington, Virginia. German police obtained a photograph from Belfas's Hamburg apartment showing a meeting between him, Budiman, and Al Amoudi in Al Amoudi's Arlington, Virginia office. [52]

Texas was not the only case where the Israelis were found to be in the same location as the Saudi hijacker cells. According to the DEA Report, another Israeli team operating out of Hollywood, Florida, led by team leader Hanan Serfaty lived at 4220 Sheridan St., #303, Hollywood, Florida 33021 (Emerald Greens Apartments) while the Saudi hijackers Khalid Al Midhar, Abdulaziz al Omari, Walid Al Shehri, and UAE national Marwan al Shehhi, operated from a mail drop at Mailbox Rentals, 3389 Sheridan St. #256, Hollywood, Florida 33021-3608. Another Serfaty residence at 701 S. 21st Ave., Hollywood was located near the homes of Atta and Al Shehhi, including a residence on Jackson Street, just a few blocks away, and the Bimini Motel Apartments, Apartment 8, at 1600 North Ocean Drive. On September 7, just days before their terrorist attack, Atta and Al Shehhi spent several hours at Shuckums Oyster Bar and Grill at 1814 Harrison St., just a few blocks away from Serfaty's 21st Ave. residence. A Miami-based Israeli unit, led by Legum Yochai, operated from 13753 SW 90th Ave., Miami while hijacker Al Shehri lived nearby at Horizons Apartments, 8025 SW 107th Ave.

During the time the Israelis and Arabs were living in Hollywood, Atta and his team were

attending flight training and inquiring about crop dusting planes in southern Florida. According to a source with high-level contacts within the Mossad, Israeli agents based in southern Florida were able to successfully penetrate the Arab cells in southern Florida and informed their Tel Aviv headquarters that an attack on the east coast of the United States was being planned and that it involved commercial aircraft. Although it is not known if these agents were art students, they were Yemeni and Egyptian-born Jews who spoke fluent Arabic and were trained at a secret base in Israel's Negev Desert. Although Mossad chief Efraim Halevy warned CIA Director George Tenet of an "imminent attack," the warning contained no details about the terrorists training on commercial aircraft. Tenet was said to have dismissed the warning because it was not specific. The Mossad units reportedly left the United States after the September 11 attack on El Al flights and were listed on sky marshal manifests as El Al employees.

It is likely that some of the Mossad warnings about hijackings in the United States did reach some people. Officials at Odigo, an instant-messaging company with offices in New York and Herzliya (where the headquarters of Mossad is located) admitted that two of its employees said they received e-mail warning of the attack two hours before the planes careened into the twin towers. Alex Diamandis, Odigo's vice president for sales and marketing, confirmed that Odigo employees in New York and Israel received a warning two hours before the attack. The warning appeared to be anonymous but Odigo programmers recorded the Internet protocol address of the message's sender. Odigo also notified Mossad and the FBI but the FBI failed to take action and notify occupants of the World Trade Center.[\[53\]](#)

By September 3, 2001, Zim-American Israeli Shipping Company, completed its move from the World Trade Center to Norfolk, Virginia after suddenly canceling its lease in April 2001 and forfeiting a \$50,000 lease cancellation penalty. World Trade Center and New York-New Jersey Port Authority Police had previously determined that Zim's World Trade Center office was an intelligence operation that involved Mossad and CIA agents. Unlike other tenants in the World Trade Center, Zim's stairwell access door were covered by security cameras.[\[54\]](#)

The major media largely failed to report the story of Israeli intelligence teams masquerading as art students. Only Fox News referred to it in a four-part investigative series in December 2001 but soon removed it from its web site. At the time, reporter Carl Cameron stated, "There is no indication that the Israelis were involved in the September 11 attacks, but investigators suspect that the Israelis may have gathered intelligence about the attacks in advance, and not shared it."[\[55\]](#)

However, Cameron's report was somewhat bolstered by news reports in early 2002 that Mossad chief Efraim Halevy, in early September 2001, sent the CIA a warning of an impending Arab terrorist attack on the East Coast of the United States. Two three-man Mossad units consisting of Yemeni- and Egyptian-born Jews had apparently tracked some of the September 11 hijackers in Hamburg and south Florida. CIA chief George Tenet referred to the Mossad report as "too non-specific" and decided not to order any higher alert level throughout the CIA's network of stations. Follow-up reports from the Mossad units referred to their quarry attending flight training. After the attacks, the Mossad teams left the United States on board El Al flights.[\[56\]](#)

Newspapers across the United States also reported Israelis being arrested around U.S. military installations. In May 2001, two Israelis, Gal Kantor and Tsvi Watermann, were arrested at the Volk Field Air National Guard base at Camp Douglas in Juneau County, Wisconsin. They said they were going to visit a museum on the base but instead began taking photographs on the runway. When an Air Force security guard asked the young men if they were selling art, Kantor became upset and demanded to know why the question was being asked. Obviously, the Volk Field security personnel had been warned about the suspicious activities of Israeli art students. Three days before the two Israelis were arrested at Volk Field, four Israelis were arrested and deported after they were

discovered selling art door-to-door in a neighborhood close to Tinker Air Force Base in Oklahoma. Reflecting some sort of official sensitivity about the Volk Field incident, the base sent a news release to the Capital Times of Madison marked "for release on request only." [57]

The Tinker Air Force Base incident was confirmed by Midwest City Police Chief Brandon Clabes who said his police officers "were on alert" because they received a national security advisory warning that "Israeli nationals were posing as students selling artwork... to gain information about the U.S. military and security." Clabes said his officers encountered the Israelis on May 17, 2002, shortly after 7:15 PM. Two of the Israelis were on foot conducting "unusual door-to-door solicitations" in the Oakwood East housing area. A third Israeli was acting as a driver. In addition to several other photo identification cards, all three had Israeli Air Force identification. Clabes identified the three Israelis as Naor Topaz, Zeev Cahen, and Yaron Ohana. The three Israelis and a fourth member of their team were later arrested by the police on visa violations. The Israelis denied they were selling their artwork. Although the Air Force Office of Special Investigations later denied the Israelis were involved in espionage, Clabes said higher authorities in U.S. law enforcement believed the Israelis were using the selling of art to get people to divulge additional information by first engaging in "casual conversation about art, and then start slipping in questions about who lived there, is their family in the military--those types of things." [58]

Around 8:10 AM on September 11, 2001, American Airlines flight attendant Madeline Amy Sweeney, a 13-year veteran of the airline, used her cell phone to report to her supervisor at Logan Airport in Boston about the hijacking and murders occurring on her aircraft. A Federal Aviation Administration (FAA) Memorandum written the same day stated that one of the hijackers assigned to seat 10B (reportedly Satam Al Suqami) shot and killed the passenger assigned to seat 9B. The passenger shot was reported to have been Daniel C. Lewin, an Israeli-American agent with the top secret Israeli anti-terrorist Unit 269 of the counter-terrorism Sayeret Matkal branch of the Israeli Defense Force. Lewin also served as the chief technology officer of Akamai Technologies, Inc., a software company based in Cambridge, Massachusetts. [59] The 911 Commission Report stated that Lewin was stabbed and not shot by Suqami. While Lewin and Israel were praised in the report no mention was made of Sweeney's last words to her superiors.

The FAA Memo, which was later reported by the FAA to be alternately erroneous and a first draft, was eventually scrubbed from the FAA's internal e-mail system. The original FAA memo stated:

EXECUTIVE SUMMARY

September 11, 2001

On September 11, 2001, several commercial air carrier incidents, believed to be terrorist-related, occurred in various locations in the United States. As numerous U.S. passenger air carriers were involved, this has impacted many passengers as well as numerous persons on the ground in these various crash sites. The following is a summary of the events, which have occurred:

American Airlines Flight 11, departed today from Boston Logan International Airport (BOS), bound for Los Angeles International Airport (LAX). The aircraft type was a Boeing 767-200 with eighty-one passengers, nine flight attendants and two crew in the cockpit, which totaled 92 persons on this flight. At approximately 9:18 AM, it was reported that the two crew members in the cockpit were stabbed. The flight then descended with no communication from the flight crew members. The American Airlines FAA Principle Security Inspector (PSI) was notified by Suzanne Clark of American Airlines Corporate Headquarters, that an on board flight attendant contacted American Airlines Operations Center and informed that a passenger located in seat 10B shot and killed a

passenger in seat 9B at 9:20 AM.[60] The passenger killed was Daniel Lewin, shot by passenger Satam Al Suqami. One bullet was reported to have been fired. The flight headed in the direction of John F. Kennedy International Airport (JFK). At 9:25 AM, this flight crashed directly into one of the towers at the World Trade Center. At 11:26 AM, a passenger manifest was obtained. The status of any selectees is as yet undetermined.

United Airlines Flight 93 departed this morning, from Newark International Airport (EWR) bound for San Francisco International Airport (SFO). The aircraft type is Boeing 757, confirmation pending. The flight consisted of thirty-eight passengers, two pilots and five crew members, which totaled 45 persons on this flight. Two selectee passengers (Christine Adams and Nicole Miller) were boarded on this flight with no unusual behavior noted per the air carrier personnel and screeners.[61] No cargo was on board this flight. One unit load device (ULD), was on board containing U.S. mail. At 9:42 AM, there was a report of a bomb threat on board this flight. Passengers' screams were heard in the cabin. At 10:05 AM, the Illinois State Police received a 9-1-1 telephone call from a passenger on that flight, who reported that three hijackers were on board with knives and reportedly made a bomb threat. The three hijackers were reported to be rushing to the cockpit area. At 10:12 AM, the flight crashed near Sommerset, PA. This location is approximately 70-90 miles from Pittsburgh near Route 30.

United Airlines Flight 175, departed from Boston-Logan International Airport (BOS), bound for Los Angeles International Airport (LAX). This aircraft type was a Boeing 767. There were no selectee passengers on this flight. The flight consisted of nine crew members and forty-seven passengers, which totaled fifty-six persons on this flight. At 9:30 AM, radar contact with FAA air traffic control was lost. At 9:45 AM, United Airlines reported that one flight attendant was stabbed and two crew members were killed. This flight crashed into the second World Trade Center Tower.

Page 2

American Airlines Flight 77, departed Washington-Dulles International Airport (IAD), destined for Los Angeles International Airport (LAX). This flight departed Gate D26 of the IAD mid-field terminal at 8:09 a.m., and was airborne at 8:21 AM. The aircraft type was a Boeing 757. Number of selectee passengers is unknown at this time; ramp personnel noticed two selectees checked bags on the ramp. One non-selectee passenger did not board due to confusion of gate location. This flight consisted of fifty-eight passengers and six flight crew members, which totaled sixty-four persons on this flight. There was no cargo being transported on this aircraft. There were a total of thirty-five checked bags. It is presumed that this flight crashed into the Pentagon located in Washington, DC at approximately 10:00 AM.

Additional information is continuously being gathered on each of the four incidents described above.

911/01 5:31 PM

In November 2001, the INS arrested several Israelis, including some with military backgrounds, selling Puzzle Car and Zoom Copter toys from shopping mall kiosks and vending carts. Many of the malls were located near U.S. government facilities, including the Pentagon and CIA. A majority of the Israelis, arrested for visa violations instead of espionage, worked for a Florida-based company called Quality Sales. A spokesman for the company admitted the company hired vacationing Israeli students but they had the wrong visas. The spokesman also revealed the Israelis were deemed "special interest" cases by INS – a new government designation applied to terrorism suspects in the wake of 911.[62] Federal authorities suspect the Israelis were using the kiosks as intelligence fronts in the same manner that Israelis were using door-to-door art sales as covers. The National

Counterintelligence Center (NCIX) stated in a report issued in March 2001 that, "In the past six weeks, employees in federal office buildings located throughout the United States have reported suspicious activities connected with individuals representing themselves as foreign students selling or delivering artwork. Employees have observed both males and females attempting to bypass facility security and enter federal buildings." The report was temporarily removed from the NCIX web site.

One of the malls where the Israeli "toy sellers" based their operations was the Pentagon City Mall, just across Intersate 395 from the Pentagon. In July 2004, the mall served as the rendezvous point for alleged Israeli Pentagon spy Larry Franklin and Keith Weissman, an AIPAC official. Franklin warned Weissman that Iranian agents were going to start attacking American soldiers and Israeli agents in Iraq. Weissman then went to brief the account of the meeting to Steve Rosen, another senior AIPAC official. They both informed the Israeli embassy in Washington and Glenn Kessler, a reporter for *The Washington Post*. Those phone calls were being wiretapped by the FBI as part of its investigation of a major Israeli spy ring in the United States, an investigation that had been going on since before the 911 attacks. The FBI was also monitoring meetings between Franklin, Weissman, and Rosen, including one held in February 2003 at the Arlington, Virginia Ritz-Carlton hotel, which adjoins the Pentagon City Mall. [63]

In February 2005, an Israeli man named Ohad Cohen was deported, along with four other Israelis, from Omaha, Nebraska. In what was becoming a common occurrence in the United States, a total of ten Israelis, who were working at shopping mall kiosks in the Omaha and Lincoln areas, were deported by Immigration and Customs Enforcement officials for illegally working in the United States on tourist visas. The Israelis operated out of Omaha's Oak View Mall and Lincoln's Gateway Westfield Mall. The Federal government probe was reported to be part of a wider probe of Israeli shopping mall kiosk activity throughout the Midwest. In December 2004, FBI and immigration officers arrested 15 Israelis in Minnesota and three operating from a mall kiosk in Grand Forks, North Dakota. [64] Omaha is also the headquarters of the U.S. Air Force Strategic Air Command (SAC).

The International Association of Counter-terrorism and Security Professionals wrote in a May 2000 report that "U.S. law enforcement reports 'numerous encounters' with Middle Eastern 'art students' with 'fraudulent documents' who attempted to 'gain unauthorized access' to federal buildings." [65]

The unusual casing of sensitive locations continued after 911. According to informed sources in Corpus Christi, Texas, young Israelis were seen conducting surveillance of the Port of Corpus Christi in January 2002. The report was contained in the U.S. Coast Guard's Corpus Christi Marine Safety Office Intelligence Bulletin. The bulletin stated:

...There were four significant events in the Port of Corpus Christi in the past four weeks. Each event is under current investigation by the FBI. They may or may not be cases of actual or potential surveillance.

- * Three men of Middle Eastern descent on board a charter boat in Port Aransas were asking unusual and very nosy questions about the operation of the ship's machinery and equipment.

- * Five men of Middle Eastern descent taking photographs of the Clark Flagship charter boat at 11:30 at night.

- * A man and a woman of Middle Eastern descent were taking pictures outside the fence of Citgo

East. Upon questioning by security personnel, the female stated they were art students. She further added they were photographing a "pipe rack." The term is one that would only be used by someone in the industry. Coupled along with several other suspicious indicators, the picture taking did not seem legitimate.

* Two men of Middle Eastern descent drove through a gate at Citgo West after it was opened to let a delivery truck out. The men drove straight down to the oil docks where a ship was moored. Before security personnel could arrive, the men boarded the ship for several minutes, and were en-route back out of the facility. The men claimed to be selling electronic equipment. In a search of their truck by the sheriff's office, a loaded pistol was found in the cab. They had also been denied access at an adjacent facility shortly before this incident.[66]

The FBI investigated a case of a "Middle Eastern-looking" man photographing the Ultramar Diamond Shamrock refinery in Three Rivers, Texas, near Corpus Christi. On November 22, 2001, a refinery employee saw the man taking pictures from Highway 281. The man sped away when refinery employees approached his vehicle, a Dodge van rented from McAllen, Texas. The FBI was called in to investigate. Live Oak County Sheriff Larry Busby said the FBI never followed up with his office after the incident. Busby and Three Rivers police chief Ace Robbins had been on the alert ever since September 11 when a suspicious aircraft was seen circling the Ultramar refinery.[67]

In June 2004, groups of young and neatly dressed "Middle Eastern-looking" men were also spotted near the U.S.-Mexican border in Arizona's Cochise County near Tombstone and the U.S. Army Intelligence and Security Command at Fort Huachuca. A spokesman for the U.S. Border Patrol in Tucson said he was not at liberty to discuss the country of origin of the Middle Eastern-looking men.[68] According to FBI sources, "Middle Eastern-looking" or "Middle Eastern descent" are internal code words used to describe Israelis without having to face the inevitable political problems of identifying them as such.

Copies of Department of Homeland Security morning briefs, classified "For Official Use Only," were mistakenly leaked to the public from an Energy Department web site. The briefs contain a number of references to suspicious "Middle East looking" persons seen around sensitive U.S. facilities. The descriptions match identically the behavior of Israeli "art students" cited in the DEA Report and various other law enforcement encounters with Israeli "movers."

The September 27, 2004 brief stated:

(FOUO) MAINE: Suspicious Persons in Southwest Harbor. According to 23 September USCG reporting, a concerned citizen reported suspicious behavior by three men of possible Middle Eastern descent at a convenience store located in Southwest Harbor. The men were asking if any local businesses rented power boats, kayaks, or bikes. The men were driving a maroon-colored van with Florida license plates. The reporting citizen stated that although he initially thought the men's behavior was suspicious, he did not think to report it, until he learned that the Queen Mary II would be making a port visit to Bar Harbor on 27 September. An investigation is ongoing. (COGARD Southwest Harbor; 23 Sep 04; HSOC 3577-04)

MASSACHUSETTS: Possible Video Surveillance of Interstate Highway. According to military reporting, on 22 September, in Lexington, a military member reported observing four Middle Eastern individuals standing on an I-95 overpass videotaping the northbound traffic and recording information into a notebook. Reportedly, the same military member recalled observing two of the individuals on the same overpass in late February or early March 2004. (AFOSI Talon 102-23-09-04-2297; 23 Sep 04; HSOC 3579-04)[69]

From the September 29, 2004 briefing there were additional reports of suspicious “Middle Easterners,” in addition to a report from San Francisco about suspicious activity by two individuals whose van was traced to a jewelry store in Seattle:

FLORIDA: Suspicious Photographing and Videotaping of High-Rise Buildings Including the Main Street Bridge and the Skyway. According to 25 September Jacksonville Regional Domestic Security Task Force reporting, in downtown Jacksonville, an off-duty police officer reported seeing one of three people, whom he described as Middle Eastern in appearance, photographing and videotaping high-rise buildings, to include the Main Street Bridge and the Skyway. When the off-duty police officer pulled alongside the minivan, the individual with the camera immediately put it down, and the minivan departed the area. The off-duty police officer reported the minivan’s license plate and description. The registration showed the minivan was maroon, while the vehicle the officer saw appeared gray. An investigation is on-going. (FDLE Daily Brief, 28 Sep 04; HSOC 3629-04)

(FOUO) WASHINGTON / CALIFORNIA: Suspicious Activity at USCG Group San Francisco. According to USCG reporting, on 23 September, Coast Guard members observed two individuals in a blue van taking pictures of the Bay Bridge and surrounding area in front of USCG Group San Francisco’s main gate. The license plates were traced to a jewelry store address in Seattle, Washington. Additional checks revealed that the two individuals were not owners, employed or had any association with the store. An investigation is on-going. (COGARD San Francisco, 28 Sep 04; HSOC 3630-04)[70]

From the September 30, 2004, Homeland Security brief, there were further descriptions of “Middle Eastern” activity:

FOUO) WASHINGTON: Suspicious Activity of Two Middle Eastern Males on Ferry. According to USCG reporting, on 27 September, in Seattle, two Middle Eastern males were observed studying the schematic of the Wenatchee Ferry for an extended period of time. As soon as the two males noticed an employee approaching, they immediately walked away from the schematic and picked up a magazine to ward off attention. At the end of the voyage, the two males returned to their vehicle. A license plate check revealed the vehicle belonged to a rental company. Information from the rental company on the vehicle indicated that it was a rented to a business located in Tukwila. The business was unable to be located. An investigation is on-going. (COGARD FIST Seattle, 28 Sep 04; HSOC 3657-04)[71]

On October 14, 2004, a further report on “Middle Eastern” activity:

Suspicious Activity at Andrews AFB Main Gate. According to military reporting, on 12 October, Andrews AFB security officers observed a possible Middle Eastern male photographing the main gate area using what appeared to be a small, disposable camera. When a security officer approached the individual to question him, the unidentified male left the gate area, walked across the street, met up with another individual believed to also be of Middle Eastern origin, entered a white, late-model Pontiac Grand Am and quickly departed the area. Reportedly, a possible Middle Eastern female was sitting in the back of the vehicle. (AFOSI Talon 331-12-10-04-2484, 12 Oct 04; HSOC 3876-04)[72]

A particularly suspicious report was found in the October 19, 2004 brief. Several teams of Israeli art students had cased U.S. Air Force bases, including Tinker Air Force Base in Oklahoma City:

MISSOURI: Suspicious Telephone Calls. According to military reporting, on 15 October, at Whiteman Air Force Base [home base for the B-2 bomber], an unknown male, described as having a

heavy Middle Eastern accent, telephonically contacted the 509 th Munitions Squadron, claiming that he represented a not-for-profit organization and wanted to confirm the squadron's address. Reportedly, when questioned about his organization, the unknown caller became belligerent and ended the phone call. On 16 October, another member of the 509 th Munitions Squadron received a call at his residence on his personal cellular telephone from an unknown individual—also described as having a Middle Eastern accent—who solicited information related to Whiteman AFB, where the military member worked, and other operationally related questions. The military member did not provide any information to the caller and hung up. An investigation is on-going. (USAF Talon Report, 207-18-10-04-2533, 18 Oct 04; HSOC 3953-04)[73]

From the October 26, 2004 brief:

(FOUO) ILLINOIS: Possible Surveillance Activity. According to the Illinois State Terrorism Intelligence Center (STIC), on 22 October, in Joliet, at a worksite at the McDonough Street Bridge, a construction foreman observed a male of possible Middle Eastern origin taking photographs of the bridge. When the foreman told the unidentified male to leave, the individual became upset and continued to photograph nearby buildings before departing the area. Reportedly, the individual left in a Chevrolet Cavalier with Minnesota plates which have been traced back to a finance company in Boca Raton, Florida. (Illinois State Police STIC, 25 Oct 04; HSOC 4065-04)[74]

From the December 9, 2004 brief yet another incident involving a U.S. Air Force Base:

TEXAS: DoD Lesson Plans Stolen from USAF Member Hotel Room / Possible Surveillance Activities. According to 7 December military reporting, in San Antonio at Lackland AFB, on 30 November, USAF personnel arrived at a local hotel and noticed four possible Middle Eastern males behaving suspiciously. Approximately three to four days later, the men were observed counting and photographing the doors to the rooms belonging to the USAF members. Reportedly, the men always traveled together, and appeared to be purposely present when the USAF members gathered for breakfast. The men were also noted to have the "No Service" door magnets posted on their doors throughout the day. On 6 December, one USAF member reported that his lesson plans were stolen from his room. The other USAF members reported that nothing was missing, but personal items were seemingly out of place in their rooms to include open drawers and closet doors. An investigation is on-going. (AFOSI Talon #409-07-12-04-2968, 7 Dec 04; HSOC 4701-04)[75]

Another suspicious case was reported in the December 28, 2004 briefing involving two "Middle Easterners" with Florida connections:

(FOUO) NEW JERSEY: Suspicious Activity at Critical Infrastructure. According to a Call-in report, on 20 December, at a Dam in Morris County, a Vehicle occupied by two males of possible Middle Eastern descent entered a restricted area. A Dam employee approached the vehicle and advised the subjects that they were on private property. The two subjects claimed that they wanted to take one last look at the reservoir and dam before they relocated to Florida. The Dam employee ordered the subjects to leave the premises, informing them that local law enforcement had been contacted. The vehicle took off at a high rate of speed leaving the premises. (Call in, 27 December 04: HSOC 4929-04)[76]

The December 30, 2004 brief actually contained a report concerning Israeli-Ukrainians detained in Buffalo for passport fraud:

(FOUO) NEW YORK: Ukrainian Nationals Attempt Entry with Photo-Substituted Passports and Visas. According to BTS reporting, on 29 December, Ukrainian nationals Ivan SERNOWSKIY

(DOB: 10/25/1968, A97914917) and Maria FESTUK (DOB: 06/20/1975, A97914918) arrived by bus at the Buffalo, NY Port of Entry (POE) claiming to be an Israeli couple named Vyeshe Slav and Marya URMANOV. The couple applied for admission as visitors for pleasure. SERNOWSKIY presented Israeli passport 8400058 in the name of Vyeshe Slav URMANOV (DOB: 03/12/1965) with a visa issued in Tel Aviv on November 29, 2000 (foil 41200881). FESTUK presented Israeli passport 6830276 in the name of Marya URMANOV (DOB: 06/20/1975) with machine-readable visa (20011717790001). The Automated Biometrics Identification System (IDENT) checks resulted in a fingerprint mismatch on Mr. URMANOV. The couple was referred to secondary for further examination. NTC research revealed a recent photo of Vyeshe Slav URMANOV which was forwarded to CBP officers for comparison. SERNOWSKIY was confronted with the fingerprint and photograph discrepancies and admitted his true identity. The U.S. Attorney's Office accepted this case for prosecution. CBP determined both aliens were inadmissible to the U.S. (willful misrepresentation of material fact), refused their admission, and detained them for prosecution. (BTS Daily Operations Report, 30 Dec 04; HSOC 4958-04)

The December 30 brief also included a report reminiscent of Israeli art student surveillance of Federal buildings and offices:

(FOUO) MARYLAND: Possible Surveillance of Federal Building in Baltimore. According to ICE reporting 28 December, a Special Agent from the US Department of Housing and Urban Development, Office of Inspector General (HUD-OIG) observed three individuals conducting possible surveillance of two federal facilities in Baltimore, MD. The two male and one female subjects, described as being of Middle Eastern descent, were seen videotaping the US Customs House and the Appraiser Building. Each of the subjects had their own camera. The agent notified contract guards inside the Appraiser Building. When the agent and guards went outside to contact the subjects, the three individuals hid their cameras and departed the area, with each subject traveling in a separate direction. The Baltimore City Police Department Intelligence Unit was notified, and the matter has been referred to an FPS Special Agent for further investigation. (ICE Daily Summary, 29 Dec 04; HSOC 4962-04)[77]

The January 5, 2005 brief also mentioned an incident involving a named Israeli citizen:

ISRAEL: Citizen of Israel Subject of TIPOFF and TSA No Fly has Visa Revoked on January 3. According to BTS reporting on 5 January, Samuel COHEN (DOB: 07/20/1969) arrived at LAX on COPA airlines from Lima, Peru, seeking admission as a visitor for pleasure. At LAX, the CT Watch determined that COHEN was a TIPOFF and NO FLY match. Close coordination resulted in the Department of State (DOS) revoking COHEN's visa on the spot. As a result of this revocation, COHEN was found to not be in possession of proper documents and was processed for an Expedited Removal. He is scheduled to depart 5 January, from the United States on COPA airlines flight CM303. (BTS Daily Operations Report, 5 Jan 05, HSOC 0033-05)[78]

On July 27, 2005, it was revealed that New York's Metropolitan Transportation (MTA) Authority's Interagency Counter Terrorism Task Force was maintaining a database of individuals stopped and questioned for filming bridge and tunnel crossings around New York City. Some of the people in the database were stopped on more than one occasion for filming and photographing bridges and tunnels and in one case an individual who was stopped for filming a New York area bridge was discovered to be driving the same vehicle as another person who was stopped earlier for filming the Verazano Narrows Bridge. An MTA source revealed that much of the filming did not involve regular tourists, but much more. The source said the filming "appear[ed] to be more than just casual filming." The filmers and photographers were concentrating on bridge beams (as in the case of the Memphis I-40 bridge) and security checkpoints. The MTA database includes individuals stopped for filming the

bridges and tunnels under the control of the MTA: Verrazano, Triborough, Throgs Neck, Whitestone, Henry Hudson, Marine Parkway, Cross Bay Veterans Memorial, the Midtown Tunnel and the Battery Tunnel.[79] A number of Federal law enforcement authorities report that suspicious Israelis continue to be stopped around the nation photographing and filming sensitive facilities and infrastructures but are not charged and brought to trial.

In October 2004, a suspicious Israeli was detained by the Delaware County, Oklahoma Sheriff's Department. Two miles of State Highway 20, east of Jay, were closed down while an Oklahoma State Police Bomb squad searched the Israeli's car for "possible terrorist activities." As has been the modus operandi in such cases, the FBI from Tulsa questioned the Israeli, who could not produce either a passport or a visa, and released him after seven hours. The Israeli had an Arizona driver's license showing an address in Gentry, Arkansas. The FBI said they were familiar with the Israeli. Delaware County Undersheriff Dale Eberle did not disclose the Israeli's identity since he was never arrested. The 40-year old Israeli, who was married to a U.S. citizen, had been traveling around the Tulsa area with a tubular camera on the roof of his car. Police were notified that the camera looked like a pipe bomb. Eberle said police were concerned that the Israeli may have been targeting the Pensacola Dam and two watersheds that feed Tulsa. The Israeli had recording devices and tools in his car, according to a police inventory. The Israeli had been asking questions about local industries in Jay and when he stopped at a local diner he refused to use a glass or silverware because he did not want to leave fingerprints.[80]

On May 15, 2003, Cloudcroft, New Mexico Police Chief Gene Green stopped a U-Haul van in Cloudcroft, New Mexico, near the White Sands Missile Test Range, for speeding. According to the *Alamogordo Daily News*, the two truck drivers had Israeli driver's licenses and claimed they were hauling furniture from Austin to Chicago. Yet the rental agreement had expired two days earlier and New Mexico was way off track from the Austin to Chicago route. The Israelis then changed their story--they claimed they were dropping off furniture in Deming, New Mexico. But they could not provide a delivery address in the town. Also, their rental agreement was only for intrastate use in Illinois. Inside the truck, Chief Green found junk furniture not worth moving anywhere and 50 boxes that the Israelis claimed were a "private delivery." The Israelis were turned over to INS and nothing more was heard about them or their "cargo." [81] Consumers who have hired them have complained about suspicious behavior and illegal practices of Israeli-owned moving companies from Wisconsin to Florida to Pennsylvania. Advanced Moving Systems of Sunrise, Florida, an Israeli-owned moving company, complained that police in Pennsylvania, Wisconsin, and North Carolina stopped several of its crews. The firm's owner, Zion Rokah, claimed the police were "xenophobic and racist." [82]

Almost one year earlier, on May 7, 2002, two Israelis were arrested in Oak Harbor, Washington, near Naval Air Station Whidbey Island. Police and Naval law enforcement investigators found traces of TNT and plastic explosives in a rental truck driven by the Israelis after they were stopped for speeding. One of the Israelis had an expired visa, an international driver's license, and no identification. They claimed they had delivered furniture in Oak Harbor and were on their way back to Canada. A bomb-sniffing dog reacted to traces of explosive material on the truck's steering wheel and gear shift. The FBI later said the explosive tests were negative and the INS, in keeping with tradition, refused to comment on the case.[83] In the days following September 11, a number of residents of Island County called emergency centers to report sightings of "Middle Eastern" looking men driving Canadian trucks.[84]

In a similar incident on May 21, 2004, two Israeli men, Tamir D. Sason and Daniel Levy, both of Metar, Israel, and reported to have been working for an Atlanta moving company, attempted to enter the King's Bay, Georgia U.S. Naval Submarine base. They were supposedly contracted to move someone from the base. As with the Whidbey Island incident, a bomb-sniffing dog alerted to a

briefcase in the truck. Security guards became suspicious when one of the Israelis could not provide proper identification. The base went into a three-hour security lockdown and a bomb squad inspected the truck. As in the other cases involving Israelis trying to penetrate security perimeters, the Israelis were handed over to immigration authorities and the FBI refused comment. In addition to the FBI, the Georgia Bureau of Investigation and Navy Criminal Investigate Service were called in to investigate the Israeli incident.[\[85\]](#) King's Bay is close to Sea Island, Georgia, the site of the June 2004 G-8 Summit, a fact that obviously piqued the interest of law enforcement officials in the area.

On May 10, 2004, two other Israeli "movers" were apprehended suspiciously close to the Oak Ridge National Laboratories in Tennessee and the Federal Correctional Institution in Butner, North Carolina where convicted Israeli spy Jonathan Pollard was incarcerated. Driving a Ryder rental truck leased in Plantation, Florida, Shmuel Dahan and Almaliach Naor, led Unicoi County Sheriff Kent Harris on a high-speed chase. The Israelis claimed they were delivering furniture to West Virginia but Harris wondered why they would have been on the more remote two-lane U.S. Highway 23 rather than the faster Interstate 26. The Israelis also possessed false identification documents, Dahan a bogus Florida driver's license issued in Plantation, Florida and Naor a fake identification card. Harris also searched a storage facility the Israelis rented in Mars Hill, North Carolina. The FBI was called in to investigate but in typical fashion they turned the matter over the U.S. immigration officers who scheduled a deportation hearing. An FBI spokesman said the Israelis were guilty of nothing more than littering. Agents of the Bureau of Alcohol, Tobacco, and Firearms also joined the investigation. While chasing the Israelis, Harris noticed they threw a vial out of the truck. The Israelis later denied they threw anything out of the truck. The ejected container was reported to have contained a suspicious "fuel source" that was sent to the Tennessee Emergency Management office in Sevierville, Tennessee. It was later discovered to have contained a mixture of a cleaning fluid called Astromid 18, Gluconic acid, and water. Harris said he was not sure why the substances were mixed together. The Israelis also had a "Learn to Fly" brochure in their truck. Harris said he "got a sick feeling" when he saw the brochure and the business card of a Fort Lauderdale, Florida-based flight instructor named Nissan Giat, another Israeli citizen. Police feared the Israelis might have been targeting the Nuclear Fuel Services plant in nearby Erwin, Tennessee. A lawyer for the Israelis later claimed they meant no harm, that Naor possessed a fake identification card so he could get into a Miami nightclub. Naor's age was never given.[\[86\]](#) Although the Federal government said the Israelis posed no danger, the state of Tennessee kept the case open. The DEA report on the activities of Israeli "art students" cited a case in which the Federal Protective Service arrested two Israeli art students in Plantation, Florida for possession of fake Social Security cards. Plantation was also the base of operations for Dahan.

On October 17, 2001, three Israelis driving a truck were discovered by Plymouth, Pennsylvania police with possession of a close-up videotape of the Sears Tower in Chicago. Plymouth Police Chief David McCann reviewed the tape and then found the Sony camera inside the truck. The police had responded to a call that the Israelis were illegally dumping furniture into a dumpster behind a Pizzeria Uno restaurant from a tractor-trailer truck registered in Florida. When the restaurant manager confronted the Israeli driver he drove off quickly from the scene. The leader of the team who drove the truck sporting the sign "Moving Systems Incorporated" was Moshe Elmakias. Two other Israelis, a woman named Ayelet Reisler, and a man named Ron Katar, were also questioned by Plymouth police after the truck was seen parked. Reisler had a German passport in one name and a prescription in another name. Whitpain, Pennsylvania Police later discovered that the truck's operator log had been falsified. All the evidence of the Whitpain and Plymouth police was collected by the FBI, which then deep-sixed the investigation in typical FBI fashion when it came to Israeli surveillance and espionage activity in the United States. Elmakias and Katar were turned over to the INS but Reisler was released.[\[87\]](#)

The Interstate 40 Hernando De Soto Bridge in Memphis was also an apparent surveillance target for the Israelis. According to the Arkansas State Police, a few days after 911, the FBI and Memphis police were alerted to two Israelis (officially reported to be of “Middle Eastern” appearance) taking photographs of the De Soto span and the older Interstate 55 Bridge. The Israelis were particularly interested in the undersides of the bridges. They had seven cameras of different sizes and makes. Upon being detained by the FBI, the men claimed to have diplomatic immunity and one produced a diplomatic passport. After the Israelis were turned over to the INS, the FBI dropped any further investigation.[\[88\]](#)



The Hernando de Soto Bridge in Memphis. Surveilled by Israelis a few days after 911.

In early October 2001, the FBI was on a nationwide search for six Israelis stopped by the police in the Midwest and found to be in possession of box cutters and “other equipment.” The Israelis also had photos and descriptions of a Florida nuclear power plant and the Trans-Alaska Pipeline. The Israelis were traveling in groups of three in two white sedans. Although the INS ordered the men released, the FBI was reported to be furious that the Israelis were allowed to flee, possibly to Canada. The INS refused to reveal in what state the Israelis were stopped. Although their Israeli passports were reported valid, there was no way to know if their true identities matched those in the passports. The FBI refused to release the names and descriptions of the Israelis. FBI Director Robert Mueller and Attorney General John Ashcroft held a news conference on October 2, 2001 warning that a new wave of terrorist attacks could be expected in the United States. Their warning came after the Israelis were stopped in the Midwest.[\[89\]](#) In what may have been a related case, six Israelis were arrested in Cleveland in mid-October and were held incommunicado. A seventh Israeli woman was also reported to have been arrested.[\[90\]](#)

On October 10, 2001, two Israelis, one a former Israeli Army Colonel and the other a Mossad agent, were arrested in the Mexican Congress with 9mm pistols and dynamite. According to the Mexican Justice Department official web site “the head of Congressional Security Salvador Alarcón verified that the Israelis had in their possession nine hand grenades, sticks of dynamite, detonators, wiring and two 9mm ‘Glock’ automatics.” The Israelis were subsequently released after the intervention of the Israeli embassy in Mexico City.[\[91\]](#)

In 1990, the head of Colombia’s secret police, General Miguel Maza Marquez, blamed Israeli paramilitary training for a wave of terrorist attacks in Colombia during the entire year. These included the bombing of an Avianca passenger jet in November 1989 that killed 117 people, assassinations of local political leaders, and two attempts on his own life. A bombing of Maza’s

police headquarters killed 63 people. Colombia responded to the Israeli involvement with terrorism by abrogating a 1962 no visa travel agreement with Israel.[\[92\]](#)

In April 2004, New Zealand's Foreign Minister called in Israel's ambassador to that nation to complain about two suspected Mossad agents arrested at Auckland airport after trying to obtain false New Zealand passports. The Australian Security Intelligence Organization (ASIO) and the New Zealand Security Intelligence Service (NZSIS) had cooperated in the sting of the Israelis, identified as Elisha Cara and Uri Zoshe Kelman. New Zealand and Australian police and intelligence services tied the Israelis to the Russian-Israeli mafia. Police were looking for a third suspected Mossad spy, Zev William Barkan, who was believed to have fled New Zealand for Israel, and a fourth unidentified Israeli believed to have gone into hiding in New Zealand. Barkan was later discovered to have served at Israeli embassies in Austria and Belgium. Police later identified a New Zealander named Anthony David Resnick, a 13-year veteran of the Israeli Defense Force and a member of Auckland's Jewish Council, as another conspirator in the Mossad operation. Resnick reportedly fled to Israel. Cara and Kelman were both released on bail with the provision that they remain at two separate Auckland hotels but both Israelis violated their bail and checked out of their hotels.[\[93\]](#) They were eventually sentenced to six months in jail and New Zealand protested the illegal Mossad operation in New Zealand by suspending relations with Israel.[\[94\]](#) There were reports that the Israeli operation extended to Australia and that the Australian Security Intelligence Organization (ASIO) may have tipped off its New Zealand counterpart about the espionage ring. After tipping off New Zealand about Cara and his accomplices, Australian agents raided Cara's rental home on Sydney's north shore. Cara's front was a Haifa-based travel agency called Eastward Bound.[\[95\]](#) After it was discovered that Kelman, an Israeli-Canadian, used a Canadian passport to enter New Zealand, Canada lodged a protest with Israel. In 1997, after two Mossad agents on an assassination mission were caught in Jordan using Canadian passports, Israel agreed to refrain from using Canadian passports in its intelligence operations.[\[96\]](#)

In February 2005, it was reported that Australia's Department of Foreign Affairs and Trade ordered a senior Israeli embassy officer in Canberra to leave the country for his intelligence ties to Cara and Kelman. Although the opposition Australian Labor and Green parties demanded details of the expulsion of the suspected Mossad agent, the John Howard government remained tight lipped about the matter.[\[97\]](#) Israeli President Moshe Katsav cancelled a March 2005 trip to New Zealand over the affair but he visited Australia on schedule.

On January 12, 2000, Indian Central Bureau of Intelligence (CBI) agents arrested 11 Israelis disguised as Islamic preachers ("tabliqis") before they boarded a Bangladesh Biman Airlines flight from Calcutta to Dhaka. The 11 Israelis, reported at first to be Afghans who spent some time in Iran, were to attend an Islamic conference in Dhaka but the government of Bangladesh denied them a visa. They all had one-way tickets to Dhaka, something that triggered alarms in Bangladesh. CBI officials were surprised when they discovered the arrested Islamic preachers were actually Israelis from the West Bank. After the Israelis were arrested, Israel exerted enormous pressure on the Indians to release them and permit them to return to Tel Aviv. A CBI official said, "It appeared that they could be working for a sensitive organization in Israel and were on a mission to Bangladesh." It was suspected that the Israelis, who could have been Afghan Jews, may have been recruited by Mossad to penetrate Al Qaeda cells in Bangladesh.[\[98\]](#)

On January 11, 2000, India's Bureau of Civil Aviation Security (BCAS) issued a Top Secret circular (NO: ER/BCAS/PIC/CIRCULAR/99), regarding a possible hijacking attempt on a Bangladesh Biman aircraft in India. The circular was signed by India's regional civil aviation security chief at Calcutta Airport and copies were sent to other Indian agencies as well as to the Bangladesh Biman office in Calcutta. It was this alert that helped India and Bangladesh nab the 11 Israelis the following day.[\[99\]](#)

The DEA-INS continued to have a “keen interest” in the activities of the Israeli art students. The DEA believed there may have been links between the Israeli espionage teams and trafficking in the drug Ecstasy. Although the Israelis denied any espionage activity in the United States, some of their supporters in the Bush administration have defended the art students claiming, “It is quite normal for young Israelites to travel around the world for one year after they complete their military service.”

A March 8, 2002, an editorial in the Albuquerque Journal summed up the general angst and suspicion over the activities of the Israeli art students:

When U.S. authorities suspect an organized team of spies is seeking to infiltrate sensitive federal office buildings and the homes of government employees, they should arrest and interrogate to get to the bottom of the plot. Instead, a draft report from the Drug Enforcement Administration reports that young Israelis posing as art students but suspected of espionage activities were merely deported.

DEA first said the youths’ actions “may well be an organized intelligence-gathering activity.” But immigration officials deported the suspicious Israelis, said to number in the dozens, for visa violations.

Perhaps the officials had forgotten the case of Jonathan Pollard, a civilian Navy intelligence officer who gave classified information to the Israelis. It was an operation that Israel eventually acknowledged was known and approved of in the highest reaches of the Israeli government. Pollard has served some 13 years of a life sentence.

The recent arrests were made in a number of major U.S. cities from California to Florida, amid public warnings from U.S. intelligence agencies about suspicious behavior by people posing as Israeli art students and “attempting to bypass facility security and enter federal buildings.”

The United States owes no duty to Israel to ignore spying. Israel, it could be argued, should at least be grateful enough to the United States that it should be reluctant to try to steal secrets.[100]

Perhaps the espionage incident would have faded entirely had it not been for the fact that similar art students, with unbelievable alibis, were caught in 2003 by Canadian security police around the Houses of Parliament in Ottawa.

On September 12, 2003, nine Israeli art students were arrested by Canadian Immigration officers and Ottawa police on Lisgar Street, just a few blocks from Parliament Hill, the day after the second anniversary of the terrorist attacks on New York and Washington. The Canadian police were tipped off by the Canadian Security and Intelligence Service (CSIS) that the Israelis, who were reported selling paintings in downtown Ottawa, were possible Mossad agents. The Israeli embassy spokesman in Ottawa used the same sort of language used by his Washington, DC counterpart to brush aside the arrests as routine, “We don't know full details about what the paintings were but it was a completely commercial matter,” said Ben Forer, the spokesman for the Israeli embassy.[\[101\]](#) The arrests followed similar arrests of Israeli art students in Calgary, Toronto, and Saskatoon, according to Canadian Immigration officials. Residents of the Ottawa suburban district of Centrepont had complained about Israelis selling fake art in 2001. Canadian authorities issued exclusion orders for all nine Israelis arrested in Ottawa and ordered them deported. Residents of the Ottawa suburban district of Centrepont had complained about Israelis selling fake art in 2001.

In August 2004, two ringleaders of an Israeli “art student” door-to-door sales scam, Guy

Grinberg and Yukov Senior, were deported from Canada for operating an art sales ring in Alberta. The “art student” ring operated in Calgary, Edmonton, and Red Deer. Eight others were rounded up with the art sales ringleaders. Three apparently escaped Canadian law enforcement arrest.[\[102\]](#) In neighboring Manitoba, twelve Israelis – six men and six women – were arrested in Winnipeg for selling the junk art.[\[103\]](#)

It is interesting to note the answers that some of the Israelis gave when they were questioned by the immigration court. Thanks to the Canadian Immigration and Refugee Board, transcripts of the hearings were made available and they permit the reader to have an inside view of how the Israeli art selling rings operated, both in Canada and the United States. Five transcripts were provided but two provide interesting details of the art selling rings. The Canadian immigration authorities did not believe most of the evasive explanations provided by the Israelis. The answers of the team leader, Roy Laniado, are extremely interesting, especially his discussion of his “boss,” an unnamed individual who traveled from the United States to Canada. As a result of the secrecy surrounding the INS roundup of some 120 Israeli “art students” in the United States, Americans never had the opportunity to know the inside story of how the operation worked:Minutes of a hearing

The Minister of Citizenship and Immigration
Le ministre de la Citoyenneté et de l'Immigration

and / et

EINAV SOFER

AMIT YEHUDAI

September 17th, 2003, Ottawa

BY MEMBER:

- So, I'll state that my name is Pierre Turmel. I am a member of the Immigration Division. Today is September the 17th, 2003, and I've been asked to preside an admissibility hearing concerning Einav Sofer.

BY MEMBER (to persons concerned)

- I'm sorry maybe for the pronunciation of your name.

A. You pronounce it good.

- And Amit Yehudai.

Q. That is you?

A. Yeah.

Q. Okay. First, I'd like to know if you fully understand English?

A. Yes.

Q. Or if you'd like to have the assistance of a Hebrew interpreter?

A. We understand everything.

- You understand everything.

Q. What about you, Mr. Yehudai?

A. I understand.

- Okay.

Q. Now, do you consent to the holding of this hearing in the presence of one another? Would you like to have your hearing separately, or if you are in agreement to have your hearing at the same time than Mr. Yehudai?

A. We agree.

Q. It is okay?

A. (Mr. Cole) Yeah.

- Okay, then.

The person to my right is the Minister's counsel, Madame Sybill Powell.

Q. Now, you have been told that a hearing was to take place today. Am I correct?

A. (Ms. Sofer) Yes.

Q. You've received the documents to that effect?

A. Yes.

A. Yes.

- On that Notice to Appear for the hearing there is a mention to the effect that you may be represented by a lawyer.

A. (Ms. Sofer) No, we don't want to be represented by a lawyer.

- You talk for yourself.

A. I don't want to be represented.

Q. You don't want to have a lawyer?

A. I'm sorry.

A. (inaudible)

- You don't want a lawyer too. Okay, if you change your mind, you just let me know, okay, and I will

act accordingly, okay.

There's another person in this room who is Mr. Yehudai's girlfriend. She is here as an observer. I will only state that observers cannot intervene in any way during the course of the hearing. Okay.

Now, I have received documents. You have copies of the same. I will file these documents into the record of the hearing. The referral under subsection 44(2) of the Immigration and Refugee Protection Act, dated the 15th of September 2003, at Ottawa, will form Exhibit C-1 into your respective file.

EXHIBIT C-1 - SUBSECTION 44(2) REFERRAL - SEPT. 15TH, 2003

And the other document, which is the report made under subsection 44(1), dated the 12th of September 2003, at Ottawa, will form Exhibit C-2.

EXHIBIT C-2 - SUBSECTION 44(1) REPORT - SEPT. 12TH, 2003

Q. Now, Ms. Sofer, you've read that report?

A. Yes.

Q. Do you fully understand its contents?

A. Yes.

Q. And what about you, Mr. Yehudai, have you read it in full?

A. (no verbal reply)

- You're nodding your head in an affirmative way.

A. Yes.

- But you have to speak up. Everything is being recorded.

A. Okay.

- Okay.

Q. And do you fully understand the content of the report?

A. Yes, sir.

- Yes.

Now, I'll tell you what I'm here for, okay. I first have to determine if you have a right to enter and/or remain into Canada. This right is restricted to Canadian citizens and permanent residents of Canada. If you are not such a person, I will then have to look at the report made against you in order to determine if you have contravened any of the dispositions of the Immigration Act, and more precisely, the ones appearing on the report.

If I find you have not, I'll say it and the inquiry will end there. However, if I find that you have

contravened the dispositions of the Immigration Act, I'll have no other choice but to make an Exclusion Order in your cases. This will mean that you will have to leave the country, and you will be prohibited from coming back to this country for a certain period of time. I'll tell you at the end of the hearing depending on the breaches to the Immigration Act how long you'll be prohibited from coming back.

Q. Okay, understood?

A. (Mr. Yehudai) Yes, sir.

Q. Following my explanations, are you still ready to proceed now...

A. Yes.

A. Yes.

Q. ...without a lawyer?

A. Yes.

A. Yes.

- Yes, okay.

BY MEMBER (to Minister's counsel)

Q. Madame Powell, do you wish to call these persons as witness?

A. Yes.

- Okay.

BY MEMBER (to person concerned)

Q. Ms. Sofer, would you please stand up and raise your right hand. Do you solemnly affirm that the evidence you are about to give shall be the truth, the whole truth, and nothing but the truth?

A. Yes, your honour.

- Thank you.

A. Can I sit?

- Yes.

Q. Do you solemnly affirm that the evidence you will give at this hearing will be the truth, the whole truth, and nothing but the truth?

A. Yes, sir.

- Thank you.

BY MEMBER (to Minister's counsel)

- Your witness.

Q. Who do you want to start with?

A. Ms. Sofer.

- Ms. Sofer.

BY MINISTER'S COUNSEL (to person concerned)

- Please state your full name for the record.

A. Einav Sofer. It's E.I.N.A.V. the first name, and the last name is S.O.F.E.R.

Q. And do you have any other names?

A. No.

Q. What is your date of birth?

A. The 26th of December 1976.

Q. And where were you born?

A. In Israel, Vesai (phonetic), the name of the town.

Q. Okay, and what is your citizenship?

A. Israeli.

Q. Are you Canadian citizen?

A. No.

Q. Are you permanent resident of Canada?

A. Am I?

Q. Do you have any permanent residency in Canada?

A. No.

Q. When did you enter Canada?

A. The 6th of August.

Q. Where?

A. Toronto.

Q. What was your purpose for coming to Canada?

A. Travel in the beginning, then to go to work.

Q. What did you tell the Port of Entry you were going to do in Canada?

A. That I came to visit.

Q. Just to visit?

A. Yes.

- Okay.

BY MEMBER (to person concerned)

Q. You did not reveal you were coming here to...

A. No.

Q. ...engage in employment?

A. No.

Q. Why not?

A. Because in the beginning when I came I didn't thought that I'm going to work. I thought (inaudible) in Canada because I'm student and I came only for two months, and then I met one guy who told me about this law, and I went to work and I didn't thought from the beginning to come to work. Because I was working as my money. And then he told me about this, and I thought why not. I didn't check this.

Q. Did not you know before coming here that you...

A. Coming to work, no.

Q. That there was, this activity going on in Canada...

A. No, I heard about.

- There is advertising being...

A. In Israel.

- ...being made in Israel, yes.

A. I heard from people that came here. They told me. Now I don't need to change everything.

Q. You had not seen that ad before?

A. Because didn't thought about coming to work because I was working in (inaudible) Service in Israel while studying. And I thought to myself, okay, this is too much, I'm going to come on vacation. I will come for two months, and then my boyfriend also will come to join me. And that's it. And then I heard about this here. I met one Israeli guy and he told me about this thing that they doing and I thought to myself why not. And it was a big mistake, excuse me.

Q. And you intended on departing Canada at which date?

A. With my boyfriend (inaudible).

Q. When were you originally scheduled to depart Canada?

A. We're supposed to be on 20 October, on the 20 of October because I'm starting my school on 26th.

- Okay.

A. So, my (inaudible). So until the end of summer vacation.

- Okay.

BY MINISTER'S COUNSEL (to person concerned)

Q. Who is, there's a note left Shara.

A. Shahaman (phonetic), this is the Israeli guy that I met.

Q. Okay, when did you meet him?

A. In a bar. He told me about this thing.

Q. Why did you come to Ottawa?

A. Because I started in Montreal and... No, I started in Toronto, and then I went to Montreal, and then to Ottawa, and I thought to go after that maybe to Vancouver and to keep on travelling. And also to go after that to North. I can tell you, to see the Northern Lights in Alberta, in Saskatchewan. Just travelling in the big city in the beginning.

Q. Did you know anybody in Ottawa?

A. No, nobody. I didn't know anybody when I came to Canada actually. I know this family here, a family.

Q. Who's Dan?

A. Dan?

- There's note that you spent two weeks in Montreal at a friend's house, Dan.

A. Ah, this is a friend from Israel that I spent with there. I was staying with Isabel house, in Isabel

house, and also with my friend Dan. But he's a guy I met also on the street. I didn't know him from Israel. Like, you know, Israeli people we always know one each other. If you go on the street and you just start to speak with people and that's it.

- All right.

Q. Now, when did you start to work in Ottawa?

A. I don't remember the correct date.

- Approximately.

A. Around two weeks ago, something like that.

Q. And what did you do?

A. Like it's written.

BY MEMBER (to person concerned)

Q. I'm sorry?

A. Like it's written, selling (inaudible).

- Okay.

BY MINISTER'S COUNSEL (to person concerned)

Q. And how many did you sell?

A. I don't know exactly how much. But I can tell you how much I believe around, like around eight-hundred (800), six-hundred (600).

Q. Eight-hundred (800) dollars in total or per week?

A. No, per week.

Q. Did you have an employment authorization?

A. No.

Q. Did you apply for an employment authorization?

A. No.

BY MEMBER (to person concerned)

Q. So you were making between six-hundred (600) and eight-hundred (800) dollars a week?

A. Yeah.

Q. You were doing good?

A. (inaudible).

- You were doing good.

A. Yes.

- You're a good saleswoman.

A. Actually I didn't do it for the selling, but it was important.

Q. I'm sorry?

A. I didn't do it for the selling because I thought about something else. I didn't do it for the money actually.

- No, no, yeah, yeah.

Q. But I mean it was easy for you to sell those paintings?

A. Yes, because I can explain about art, and I know a lot about art because I'm offering art in Israel my country. So (inaudible), and like I said in the beginning my main idea wasn't to sell them. My main idea was to come to people and talk to them about the thing that I know, to give them maybe a small knowledge about art, what I'm doing. And (inaudible) because this.

BY MINISTER'S COUNSEL (to person concerned)

Q. Were these your paintings?

A. No, no. I'm doing my own painting in Israel. I'm doing my own art.

BY MINISTER'S COUNSEL (to member)

- Those are all the questions I have for her.

A. Okay.

BY MINISTER'S COUNSEL (to person concerned)

- Now, sir, could you please state your name for the record.

A. My name is Amit Yehudai, Y.E.H.U.D.A.I.

Q. Okay. You have any other names?

A. No.

Q. So what is your date of birth?

A. Sixth of August 78.

Q. Sixth of August?

A. Seventy-eight.

- Okay.

Q. So where were you born?

A. In (inaudible).

Q. What is your citizenship?

A. Israeli.

Q. Are you a Canadian citizen?

A. No.

Q. Are you permanent resident of Canada?

A. No.

Q. When did you enter Canada?

A. Fifth of August.

Q. Where?

A. Toronto.

Q. And what did you tell the Port of Entry your purpose of coming to Canada was?

A. For visiting.

Q. And what was your purpose of coming to Canada?

A. My purpose was to see (inaudible)

Q. Had you met before?

A. Yes.

BY MEMBER (to person concerned)

Q. Where?

A. In Toronto.

Q. You've been here before?

A. (no verbal reply)

Q. When was that?

A. Probably two years ago.

Q. Two years ago?

A. (no verbal reply)

Q. Have you kept in touch over the past two years?

A. (no verbal reply)

BY PERSON CONCERNED-MS. SOFER (to member)

- Sir, (...inaudible...)

A. Yeah.

- I'm sorry.

BY MEMBER (to person concerned)

Q. Do you know each other?

A. (Ms. Sofer) (inaudible).

Q. You've travelled together?

A. No.

Q. You arrive on the same day?

A. Yes. We met in the airport, sir.

- Okay.

A. And then (inaudible).

- Okay.

BY MINISTER'S COUNSEL (to person concerned-Mr. Yehudai)

Q. Who met you at the airport?

A. Who met me, Roy.

BY MEMBER (to person concerned)

Q. I'm sorry?

BY MINISTER'S COUNSEL (to person concerned)

Q. Roy?

BY MEMBER (to person concerned)

Q. You met Roy Maniato?

A. Yes.

Q. At the airport. You knew him?

A. I knew him from Israel but in another situation.

Q. Why was he at the airport to meet you on arrival?

A. No, he was just picking me up and then I went to Montreal.

BY MINISTER'S COUNSEL (to person concerned)

Q. Did he take you to Montreal?

A. What?

Q. Did he take you to Montreal?

A. No, I rented a car.

Q. How long did you stay in Montreal?

A. Like one month, something like that.

BY MEMBER (to person concerned-Ms. Sofer)

Q. Have you also got picked up at the airport by Roy Maniato?

A. No. I went, I took a taxi because I didn't know where. I took a taxi to hotel, and then Amit came to the hotel, and that I arrived, (inaudible). And then it was after I came with him to Montreal.

Q. With Roy?

A. No, with Amit. Because I didn't know (inaudible).

BY MINISTER'S COUNSEL (to person concerned-Mr. Yehudai)

Q. So Roy picked you up at the airport and you went back to his house?

A. No, to hotel.

Q. To his hotel?

A. Not this hotel. I look (...inaudible...) hotel next to the airport.

A. (Ms. Sofer) I can, if (inaudible) to talk, or you can check also on the ticket. I can and I went, nobody came to pick me. I took a cab to one place that my friend that she was travelling, she told me to go in Toronto. That it's a very good place and a cheap one. And then Amit also came to this place. And then the day after we went together to Montreal.

Q. So you just met in the airport, or you met at the hotel?

BY MEMBER (to person concerned-Ms. Sofer)

Q. At the hotel, not at the airport?

A. Yes, at the airport.

BY MINISTER'S COUNSEL (to person concerned-Ms. Sofer)

Q. So you just went to Montreal then?

A. Yeah, because, you know, I didn't know anybody, so he said that he was going to Montreal, so I went.

BY MINISTER'S COUNSEL (to person concerned-Mr. Yehudai)

Q. All right, so you went to Montreal and visited your girlfriend?

A. Yes, my girlfriend.

Q. And that was your reason for coming to Canada?

A. Yes.

Q. What was your... why did Roy pick you up? Did you contact him before you were coming to Canada?

A. It was like, like it you said about the advertisement, something there in advertisement. So it was like kind of, like an option, like an (inaudible).

Q. Okay, so you had answered the ad in Israel?

A. What?

Q. You called the ad in Israel?

A. Yes, yes. I just want, you know, it was like my summer vacation, I like to travelling, so I called them to say an option. Maybe it could, you know. This could be just an option.

Q. And when did you find out Roy was involved?

A. I didn't know that Roy. They told me like okay, if you want, you can come, some guy named Roy

will wait for you. That's it.

BY MEMBER (to person concerned)

Q. The person you talked to told you...

A. No...

Q. ...told you could come and a person by the name of Roy ...

A. Will pick me up, exactly.

Q. ...will pick you up...

A. Exactly.

Q. ...at the airport?

A. Exactly, because this kind of service they offer.

- Yeah.

A. Like small (inaudible) for you like when you come.

- Uh-hum.

A. But then the first and the main reason I came (...inaudible...) and I told him I go to Montreal and I need to think about it like this, to see if I want to go.

BY MINISTER'S COUNSEL (to person concerned)

Q. But he was picking you up, but you knew that a person that you had contacted about work was picking you up at the airport?

A. He pick me up.

- Okay.

Q. So at the Port of Entry did you mention that you were going to be meeting with a future employer?

A. He wasn't my employer. I met him also in Israel. He was my friend. I didn't know. They told me Roy, but I knew him from Israel two years ago. When I talked with him...

Q. When you knew that they told you that someone from their work would pick you up at the airport and meet you, is that correct?

A. Yes.

Q. Okay, and his name was Roy?

A. Yes.

- You didn't know you knew him before. This is somebody named Roy that picked you up at the airport and he was involved in selling paintings, okay.

A. This is true.

Q. So when you came to the airport and the Port of Entry person said why are you here, you said?

A. For visiting.

- Okay.

A. But I want to explain something. When he picked me up I wasn't like in a status of a (inaudible). I told him also in the beginning that I come for Canada for my reason, and if it's like, if I can combine go with him then it's okay. But my reason coming was to see the (inaudible). So when he picked me up, it wasn't like he picked up to work. He picked me up like this service, like this company like it's doing like a favour for you. They can (inaudible) you want to do. They treat you nice. So, you know, it's like kind of (inaudible).

Q. How much did you make selling paintings?

A. Like six-hundred (600), seven-hundred (700).

BY MEMBER (to person concerned)

Q. When did you start selling paintings?

A. What?

Q. When did you start selling paintings?

A. I sell frames not paintings.

Q. I'm sorry?

A. I sell frames not paintings.

Q. When did you start selling frames?

A. After like (...inaudible...)

Q. How long after you had arrived?

A. Like three weeks and a half, something like that.

Q. And in which city have you sold those frames?

A. In Ottawa.

Q. Here only, not in Montreal?

A. Not in Montreal.

BY MINISTER'S COUNSEL (to person concerned)

Q. When did you meet up with Roy again?

A. After I had no contact with him, and I came Toronto.

Q. Did you have an employment authorization?

A. (inaudible).

Q. Did you ever apply for employment authorization?

A. (inaudible).

Q. Pardon?

A. No.

BY MINISTER'S COUNSEL (to member)

- I have no further questions.

A. Thank you.

BY MEMBER (to person concerned)

Q. Mr. Yehudai, ...

A. Yes.

Q. ...where is your girlfriend living?

A. My girlfriend?

- Yes.

A. In Montreal.

Q. Where? What's her address?

A. It's Rue Cuvillier.

Q. I'm sorry?

A. Rue Cuvillier.

- Would you spell that out for me.

A. I don't know the spelling in French. It's Rue Avenue East Cauvillier, it's C.A.U.V.I.L.L.E.R. Rue Cauvillier it's near Sherbrooke.

- Okay, she is in the back of the room, I'll ask her.

BY OBSERVER (to member)

- La rue Cuvillier.

A. Cuvillier.

BY MEMBER (to person concerned)

Q. Okay, is she living alone there or with her parents or?

A. No, she live alone.

- Alone.

Q. Is she employed, would you know?

A. Yes.

Q. What does she do for a living?

A. She work in a bookstore, in a bookstore.

Q. In a bookstore?

A. Yes.

Q. Is full-time employer?

A. I don't know what is the status, but I think so.

Q. Was she working five days a week?

A. Five days, yes, four or five days.

- Four, five days a week, okay.

Q. And was she working during the time you were at her place?

A. Yes.

Q. She was?

A. ...

Q. She didn't take any holidays?

A. She had sometimes like three days off so we could be together. But otherwise when she's working she work like from ten to six or nine to ten. So still we have the day.

- Uh-hum.

A. And sometimes I go to meet her at her work (inaudible).

Q. I'm sorry?

A. Sometimes I go to meet her at her work and (inaudible). So then (inaudible).

- Yeah, okay.

Q. And when you came to Ottawa in order to engage in employment did she come to Ottawa with you?

A. If she come with me?

- Yeah.

A. No, I go on the weekends to Montreal.

Q. In a weekend, during the weekend?

A. Yes.

- Yeah, okay.

BY MEMBER (to Minister's counsel)

- Madame Powell, I'd like to hear you with regards to the misrepresentation allegation concerning both of them.

A. Of what Ms. Sofer has told us...

Q. I'm sorry?

A. From what Ms. Sofer...

- Yes.

A. ...has told us today...

- Yes.

A. ...she basically says that she came to Canada and within a few short hours met up with someone. They both went to Montreal the next day. A few weeks later they end up in Ottawa not knowing that they would end up in Ottawa, I don't believe, together. She says that she knew nothing about this, about this painting before she came to Canada. She met somebody on the street who told her about it. And yet she would have been driving in a car the day after she arrived with someone that was very knowledgeable about it all the way to Montreal.

I find that what she said today that she came to travel, and that she just basically meet people on the street and move in with them. Difficult to believe in 2004, and I don't believe that her only purpose to come to Canada was to solely travel and would like to see her described as misrepresentation, as well as (inaudible).

In terms of...

- Hold on a second. I'll give her immediately an opportunity to respond.

BY MEMBER (to person concerned)

Q. You've heard what Madame Powell said?

A. What can I do now? I did something wrong. I know that I did something wrong. In the end the most important thing that I did something wrong. The most important thing if I would say that I come to visit, nobody would believe me because everybody is looking on the last thing, the last thing was very terrible, is very wrong. And I can understand why she find it hard to believe me. I can understand her and I respect what she's saying because it sound to her very strange and she don't know how the Israeli people like us how we talk to one each other. When we see one people in the street and just start talking one to each other. So, but the main important thing is that I did something wrong and I know it.

- Okay.

BY MEMBER (to Minister's counsel)

- As concerns Mr. Yehudai.

A. Mr. Yehudai had contacted this company before he left Israel. He had agreed to have someone from the company pick him up at the airport. Someone who he says that he later found out he already knew and someone that was very involved in the painting business. I find it difficult to believe that he didn't have at least some plan to take part in working when he came. And I believe that although it may not have been his main reason, certainly it was part of... part of what he planned to do here, and I believe that he should be described for misrepresentation (inaudible).

BY MEMBER (to person concerned)

- Yes.

A. Regarding what she say, quite agree with, you know, just want to say it again that like she said the main reason come was not for work. I didn't talk before about the work. It was only like an option, possibility. Because I'm a student. And then the thing that they pick me up, you know, it's like to save the twenty-five bucks for the taxi, which for me it's not worth it. And that's it till I come to Montreal. I'm not saying after I work, and (inaudible). That's it.

- Ms. Sofer and Mr. Yehudai, you have both testified during the course of the admissibility hearing. Your testimony, firstly, permits me to conclude that you have no right to enter and/or remain into Canada given that you are not Canadian citizens nor permanent residents of Canada. You both are citizens of Israel by birth in that country.

You have both testified having arrived in Canada on the 5th of August 2003, at Toronto. And you have both subsequently engaged in employment without having first obtained the written authorization from the Immigration Department. You were selling paintings, and frames for you, Mr. Yehudai, and received a commission as a remuneration. You earned just between six to eight-hundred dollars per week.

So obviously there's an allegation that has been established in that you contravened the dispositions of paragraph 41(a) of the Immigration and Refugee Protection Act in that on a balance of probabilities there are reasons to believe you are a foreign national who is inadmissible for failure to comply with a requirement of the Act. That was the requirement of obtaining a written authorization before engaging in employment.

Now, there was another allegation in both cases to the effect that you would also be inadmissible into Canada by reason of having exercised, whether directly or indirectly, a misrepresentation relating to a relevant matter which induced or could have induced in error in the administration of the Act.

Now, you have testified, Ms. Sofer, that you had no clue of this working activity before reaching Canada. That you have learned about this once in Canada, and then decided to engage in employment. But I'll come back on your testimony at a later time during the course of this decision. I want first to turn to Mr. Yehudai who said that prior to his coming to Canada he had seen an ad in a newspaper and contacted a person. He was explained what the work was all about and has agreed to meet a person at the airport on the day of his arrival. So a representative of the company was there by the name of Roy, but it happened that he was someone he already knew for some years. He didn't know at first that Roy would have been the person he knew for some years.

So, I do not know if I'm going to believe that part of his testimony. But if I were to believe it, what I realize is that Mr. Yehudai contacted the company, inquired about what was involved as a work, agreed to be met the very day of his arrival in Canada. And notwithstanding the fact he is trying to convince me that the only reason for his coming to Canada was to pay a visit to his girlfriend. His girlfriend lives in Montreal and three weeks after his arrival he moves to Ottawa and engage in employment for that person called Roy who is acting as a supervisor, and his girlfriend stays in Montreal where she is fully employed and had no holidays but is returning every weekend to see her. So I would say that we might be playing on words here, Mr. Yehudai, when you say that the main reason for your coming to this country was to see your girlfriend.

Well, I may use the same tactic here. It might have been true that the major reason for your coming was to see your girlfriend, but there was a secondary and a complementary reason to your coming, which was to make money during your stay by working in Canada. Otherwise you would not have prior to departing Israel contacted the company in order to see what involved the work you could perform while visiting Canada. So I believe in all likelihood that you had the intention, even it is true to say you were coming here first to see your girlfriend at the same time you had the intention of engaging in employment which you have not revealed. So I find the second allegation has been established.

Now, as concerns Ms. Sofer, there are very strange coincidences in that she arrives here on the same day that Mr. Yehudai, though on a different flight, and she happens to meet also Mr. Roy because she met Yehudai at the hotel where she went. And quite curiously it is the same hotel where Roy brought Yehudai when he picked him up at the airport. And you happen to travel to Montreal together, and you happen to be now working both of you for the same Roy.

So I think I can conclude on a balance of probabilities, I might be wrong, but I'm looking at the

odds, and when examining all these facts, I conclude on a balance that your coming into Canada was not only to do tourism, but while doing tourism, work at the same time to maybe make some bit of money to help your tourist visit. So I find this allegation to have been also established.

So I'm ordering in both of your cases exclusions from Canada, and you are prohibited from coming back to this country for a period of two years. If you want to come back to Canada within that two year period, you first present yourself to a Canadian Embassy and ask for the written consent of the Immigration Minister. So a Canadian visa officer will examine the reasons why you want to come back here, and if he finds you have valid reasons for coming back and you are acting out of good faith, then you'll be issued the special consent.

A. (Ms. Sofer) Just a question, sir.

- Yes, you can.

A. Maybe you can give me two years and Amit only one year because, sir, maybe we don't know but it's the law, you know.

- No, no, no, that is the law. That is two years for each of you. I cannot give you one of his years.

A. Why not, sir?

- No, no, I can't. That's how it goes.

Today's hearing is now terminated.

Minutes of a hearing

The Minister of Citizenship and Immigration
Le ministre de la Citoyenneté et de l'Immigration

and / et

ROY LANIADO

September 17, 2003, Ottawa

BY MEMBER:

- Good Morning. My name is Pierre Turmel. I am a member of the Immigration Division. Today is September 17, 2003, and I've been asked to preside an admissibility hearing concerning Roy Laniado.

BY MEMBER (to person concerned)

Q. That is you?

A. Yes, sir.

Q. Mr. Laniado, I understand you are fluent in English. You did not have the services of a Hebrew interpreter?

A. No, I don't.

- No. Okay.

The lady to my right is the Minister's counsel, Madame Sybill Powell.

Q. Now, Mr. Laniado, I guess you have been told that an admissibility hearing was to take place today. Am I correct?

A. Yes, sir.

- On the Notice to Appear for this hearing, which you received, there's a mention to the effect that you have the right, if you want, to retain the services of a lawyer. It is a right that you have. It is not an obligation as you may choose to proceed on your own.

Q. So what do you want to do today?

A. I think I can explain myself in most of the case.

- Good. I till then proceed. However, if any time during the course of the hearing you change your mind and you feel that the presence of a lawyer would become necessary, all you have to do is let me know. Okay.

A. I have a question.

- Yes.

A. After the hearing conclude,...

- Yes.

A. ...could then I come to a lawyer and appeal upon this hearing?

- No, there's no appeal.

A. No appeal.

- There's no appeal.

A. Okay.

- That there be a lawyer here or not, there won't be any appeal against the outcome of the hearing.

A. Okay.

- Okay.

Now, you have a package of documents. I have the originals here. The very one is a referral for

inquiry under subsection 44(2) of the Immigration and Refugee Protection Act. This document was made at Ottawa, on the 15th of September 2003. This document only gives me jurisdiction to proceed with the hearing. I will file it as Exhibit C-1.

EXHIBIT C-1 - SUBSECTION 44(2) REFERRAL-SEPT. 15, 2003

The other document which is most important to you is the report made under subsection 44 sub (1) of the Immigration and Refugee Protection Act. It is also dated, well, it is dated the 12th of September 2003.

Q. Have you read that report in full?

A. I read it briefly. Now I go...

Q. You want to have a couple of minutes?

A. Sure.

- There are two pages. While you're reading I'll say that I will file this report as Exhibit C-2.

EXHIBIT C-2-SUBSECTION 44(1) REPORT-SEPT. 12TH, 2003

A. There is one thing that is not copy right.

- Okay, do not explain immediately. You will be given an opportunity during the course of the hearing to testify, okay.

Q. Now, you've read it in full. Now, do you understand what it says in there?

A. Yes, I do.

- Okay. Let me give you a bit of explanations as to the purpose of the hearing and its possible consequences for you. First of all, I'm here to determine if you have a right to remain into Canada. Canadian citizens and permanent residents of Canada have a right to stay here. If you are not such a person, I will then have to look at the well-foundedness of the allegations appearing on the report. And if I find these allegations to be true, I'll have no other choice but to make an Exclusion Order in your case. This is a removal order. This will mean that you will have to leave Canada, and you will also be prohibited from coming back to his country for a certain period of time.

If I were to find that the first allegation, the only first allegation is founded, you'll be prohibited from coming back to Canada for one year. If I find that both are, that is the last one too, then you'll be prohibited for two years. If you ever want to come back here within that period of time, you will firstly have to present yourself to a Canadian Consulate or Embassy in any country where Canada has official representatives, and this in order to ask for and obtain the Minister's written consent.

Q. Are those explanations clear to you?

A. Yes.

- Okay.

Q. Following my explanations, are you still ready to proceed on your own?

A. Yes, sir.

- Okay. Now, the Minister's counsel, Madame Powell, has the burden of proof. She will most likely call you as a witness. She may call other witnesses. She may present documentary evidence. On your side, you'll have the opportunity to examine all the evidence, cross-examine witnesses, if any persons are being called to testify.

A. Okay.

- And at your turn, you'll be given an opportunity to present your own evidence. Okay.

A. Yes, sir.

BY MEMBER (to Minister's counsel)

- Madame Powell.

A. Yes, Mr. Member.

Q. You wish to call him as a witness?

A. Yes, please.

BY MEMBER (to person concerned)

- Mr. Laniado, you're being called as a witness to this hearing. I'd like you to please stand up and raise your right hand.

Q. Do you solemnly affirm that the evidence you are about to give shall be the truth, the whole truth, and nothing but the truth?

A. Yes, sir.

- Thank you. Have a seat.

BY MEMBER (to Minister's counsel)

- Your witness.

BY MINISTER'S COUNSEL (to person concerned)

- Please state your full name for the record.

A. Mr. Roy Ezra Laniado.

Q. Any other names?

A. No.

Q. What is your date of birth?

A. February 7, 1979.

Q. And where were you born?

A. Israel.

Q. What is your citizenship?

A. Israeli.

Q. Are you a Canadian citizen?

A. No.

Q. Are you permanent resident of Canada?

A. No.

Q. When did you enter Canada?

A. March 23rd.

BY MEMBER (to person concerned)

Q. Of which year?

A. 2003.

BY MINISTER'S COUNSEL (to person concerned)

Q. And where was that?

A. Toronto.

Q. When you came to Canada what did you tell the Port of Entry officer what's your reason for coming?

A. Travelling.

BY MEMBER (to person concerned)

Q. I'm sorry?

A. I told him I'm coming to travel.

Q. As a tourist?

A. Yes.

BY MINISTER'S COUNSEL (to person concerned)

Q. Why were you coming to Canada?

A. To travel.

Q. Was that your sole reason for coming to Canada?

A. Yes.

Q. On the 12th of September you were arrested with a number of others. Can you tell me why you were with this group of people?

A. Yes, I came here to meet the guys.

BY MEMBER (to person concerned)

Q. You came here to meet who?

A. To meet the persons that were arrested.

- With you, okay.

A. To give them frames, paintings. To leave the same day to Toronto.

BY MINISTER'S COUNSEL (to person concerned)

Q. Why were you giving them frames and paintings?

A. For them to sell them.

Q. Was that the first day you met them?

A. No.

Q. How often had you supplied them with frames and paintings?

A. Once a week, once in two weeks.

Q. Did you charge them for these frames and paintings?

A. I wouldn't charge them in advance, no.

BY MEMBER (to person concerned)

Q. You would not charge them in advance, but would they have to pay you back?

A. Yes, after they sold them, they would have to pay, to pass me the, yes.

BY MINISTER'S COUNSEL (to person concerned)

Q. How much would they give you like per painting, or was there a set amount each week they had to give you, or?

A. They were amount to be give me for the painting, 80 dollars painting, and 85 dollars frame.

Q. How long were you doing this? How many weeks?

A. Approximately between 16 to 18 weeks.

Q. How many weeks after coming to Canada would that have been?

A. Eight weeks.

BY MEMBER (to person concerned)

Q. You started eight weeks after having entered Canada?

A. Yes.

BY MINISTER'S COUNSEL (to person concerned)

Q. How did you get this job?

A. There was a ad in the newspaper in Israel.

Q. When was that?

A. The beginning of March.

Q. Before you came to Canada?

A. Yes.

Q. So you had the job before you came to Canada?

A. Yes. But it was just an option for me. I came here originally to travel. And then because of my lack of cash, a lot of money, I started working. I was supposed to work for a period of time and then to continue my travelling. To leave Canada to South America.

BY MEMBER (to person concerned)

Q. Okay, how much are you getting for yourself out of these ...

A. This money?

- Yeah.

A. I would get eventually between two to three and half thousand dollars a month. Like I get it every...

Q. That's for your own?

A. That's for myself, yes.

- Okay.

BY MINISTER'S COUNSEL (to person concerned)

Q. The people that worked for you how much did they get?

A. It's something you won't be able to say because some of them they don't sell anything, so they wouldn't get anything. Some of them sold a few I cannot really say.

Q. Did they get a percentage of the profits per painting?

A. From their sales, yeah.

Q. Did you have any expenses...

A. Yes.

Q. ...other than... what were your expenses?

A. Cell phone, vehicle, accommodation.

Q. Accommodation for yourself...

A. Yes.

Q. ...or accommodation for them?

A. For myself.

Q. Cell phone, you said cell phone.

A. Cell phone.

- Car.

A. Car and accommodation, vehicle and obviously fuel. I'm driving a rental. It's not my vehicle. Everything just to support myself.

Q. Who made their room?

A. They did.

Q. They paid their room?

A. I paid it in advance and they returned me the money. They couldn't afford a month in advance.

Q. So you paid a month in advance?

A. Yes.

Q. All right, so...

A. It's not came, it didn't came from my pocket, but yes.

BY MEMBER (to person concerned)

Q. Where did it come from?

BY MINISTER'S COUNSEL (to person concerned)

Q. Where did the money come from?

A. Like I explained the officers from immigration, I'm not in charge of this business. I'm not the head of this group of students. There was another guy, there is actually another guy or two or twenty, I don't know what. The one that I'm aware of on top of me. I would take the money from them and I had to, give him the money after I got my share. And from this money I could rent their houses, and then when they return me, I would add this to the sum and give it to him.

BY MEMBER (to person concerned)

Q. Who is that person?

A. (inaudible) I don't have any specific information on him. You must understand it's the owners of this kind of business wouldn't like to expose themselves into any...

- Okay.

A. Any problem with the law. So it's usually they stay, like in the case, they stay in the dark, no names, no phone numbers, no address.

- Well...

A. Even if I wanted to...

- ...you have to get in touch with him. You have to return the money.

A. He would have called me to my cell phone, let me know when can I meet him in Toronto. Most of the time in Toronto. He would give me the money and...Excuse me, I give him the money.

- Yes.

A. He give me the frames and the paintings. So.

Q. Does that person lives in Canada? Would you know if that person is a Canadian citizen or a foreigner, or?

A. He's an Israeli.

- Yeah.

A. He told me he lives in the States. I wouldn't take his word of.

- Yeah.

BY MINISTER'S COUNSEL (to person concerned)

Q. Why were you hired as the group leader of this group?

A. He liked me I guess in some sort of way. I met with him in Israel and I spoke with him for a while and he...

BY MEMBER (to person concerned)

Q. You met with him in Israel prior to coming to Canada?

A. Yes. The way I got into this job is through his help. I called him and I got the message they will come to me if I (inaudible) the job. I met him at (inaudible).

- Yes.

A. He explained to me, first of all, I was supposed to call him as if I would work as a salesman going door to door trying to sell the paintings. Then he asked me about my military service. What I did here, what I did there. And my military service, has a certain...

- Background.

A. ...experience, background. It was sufficient for this kind of job. That's why eventually he wanted me to do this job and not other. Want to be salesman or something else just...

- Be a kind of a supervisor.

A. Yes. And I must say that at least for the concern of taking care of the employees after you found out they're not Musad [sic] agents and I hope that it's clear for everyone.

Q. That?

A. We're not Musad [sic] agents. That they were taken care of very good. I took care for everything they needed starting accommodation, going onto all sorts of problems they had, all sorts of issues they needed to solve as foreigners in a country. And they were treated in the most decent way I could manage.

- Uh-hum.

BY MINISTER'S COUNSEL (to person concerned)

Q. How much money did you bring to Canada with you?

A. I came with me with four-thousand U.S. dollars and a very big ...not a lot of Canadian dollars. But when I met my, my parents were already in Canada last week actually, so they brought me another sum of Canadian.

Q. How much money did you have when you were arrested?

A. First of all, I never got a report from the police on how much money did they seized us.

Q. How much do you think was there?

A. There was three-thousand and four-hundred or five-hundred U.S. dollars, and between seven to eight thousand in Canadian dollars.

Q. How did you have four-thousand dollars U.S. to come to Canada? Were you working in Israel?

A. First of all, I used to work, not in the last year, but I lived and worked in Israel. I've been working since I was 16.

BY MEMBER (to person concerned)

Q. But how long have you been out of employment?

A. Two years, two years and something.

Q. Out of employment prior to your coming here?

A. But I, once again I was working since I was 16.

- Yes.

A. Providing myself.

- Yes.

A. And I didn't let... I do have a wealthy family that has put some money aside. So this state of my life when I do mostly travelling I'm using this money to travel.

- Okay.

BY MINISTER'S COUNSEL (to person concerned)

Q. Where have you travelled?

A. Oh, no.

Q. No, no, but where?

BY MEMBER (to Minister's counsel)

- Well, Madame...

BY MEMBER (to person concerned)

- Sir, do not answer the question.

BY MEMBER (to Minister's counsel)

- That question is not real...

A. Relevant.

- ...relevant to the allegation.

A. All right.

BY MINISTER'S COUNSEL (to person concerned)

Q. How long had this group been in Ottawa? Not all members of the group but this group of sales people.

A. Approximately a month and a half.

Q. Did you have a work permit, an employment authorization to do this work?

A. No.

Q. Where did you travel in Canada?

A. All over. East coast, West coast, all over.

Q. Did you know anybody in Canada?

A. Yes.

BY MINISTER'S COUNSEL (to member)

- That's all my questions.

A. Thank you.

BY MEMBER (to person concerned)

- Madame Powell, has ended her presentation of evidence, and she believes that your testimony is sufficient to establish the well-foundedness of the allegations brought against you.

Q. Is there anything you would like to add on your side?

A. I don't have any question, but I have a few things to say if your honour is willing to hear it.

- Go ahead.

A. I would like to say first of all that I really appreciate and love your country. I think it's one of the greatest country in the world if you look at it, and I travelled a great, a lot. I travelled a lot so I can tell the difference between a state to another. Since I started working with this here I had a lot of ideas and lot of thoughts about opening here a business in Canada. I do not want to get a Canadian citizenship. I would like to spend the rest of my life in Israel. I'm satisfied with my citizen, my Israeli citizenship and yet I think that Canada has a lot to offer to foreign investors. And I think that

me with my, if I can say, talent and my will to work, I can help Canada a lot.

- But this, Mr. Laniado, you'll have to do through the proper channels.

A. I know. That's...

- That is you'll have to file for permanent residency...

A. A week in advance.

- ...at an embassy.

A. A week in advance to the incident, to the arrest, actually I started doing some, going to lawyer and this and that to try and open a business. Legal business, to stop doing the monkey business stuff, and to open it legally to pay taxes like everyone else and do everything right, on the right way. I'm aware that what I have done is wrong and I can see why the Canadian government is doing us this hearing and eventually will probably send us to our main land.

- Yes.

A. I would like to at least have the opportunity to say that I would like some day to come back to Canada, and on a legal permit, of course, to open a business and to try and do something which I know can be very nice here. Can help me, can help Canada, can help the people of Canada. Because after all Canada is a growing country and you need both young men to work here, or women. And I would like to add something else that is relative to this case, if I can.

- Yeah.

A. That when we got arrested, so eventually when we set off to our homes, (inaudible) so some of our belongings wasn't returned to us. I had a wallet, a leather wallet, 35 dollars inside the wallet with two credit cards, two debit cards, an Israeli Driving License, my International Driving License.

Q. Those documents were seized by the cops, by the policemen?

A. They weren't seized. They were, I have downstairs you can, over here maybe you can see photographs of all these documents. But somehow they weren't returned to me. I came here, we were released on Friday evening. Saturday, Sunday I came here there was no one here. There was no one to talk to. I left messages.

- Okay, okay.

A. Impossible. And right now nobody finds it by the way.

Q. Oh, the documents are lost?

A. The documents are here, but my credit cards, my Driving License, I don't have any four or five...

Q. Where are those documents? Do you have them on file?

A. The police and the immigration blame each other for losing them. Basically it's...

- Well...

A. Right now when you seize all the money.

- Yeah.

A. And all my documents and my passport is here, in Canada I'm stuck.

- Unfortunately, I cannot intervene in this matter, but I understand your concerns and you will certainly have to inquire before immigration and the policeman in order to find out what happened to those cards. And someone will have to certainly answer and give reasons why those cards have suddenly disappeared. That's all I can say on this.

A. I'm not saying for anything other than reason that right now I don't have any ID. I can...

- No, ...

A. Because my family...

- ...immigration has seized your passport. The passport will be returned to you when you will leave Canada.

A. But the thing that until then I don't have anything. A few days ago I was pulled over by a cop. It took almost three hours until, like for a traffic violation.

- Yes.

A. ...it took two hours until he finally understood who I am, what am I doing here, and what can he do to me or whatever. He could arrest me immediately if he wanted. He was just nice trying to solve this thing in a good way. I don't have any credit cards, so I need to make new ones. I cannot do it. I don't have any ID. I don't have any money. I cannot get any Western Union money transfers. And please get me my passport back. I'm not asking you to find the wallet, but any kind of ID. I'm not gonna run from Canada with anything. I have bond of fifteen-thousand dollars.

- Yes, Mr. Laniado, this will have to be discussed with immigration. I cannot order immigration to return you the passport. They're the only ones who are to decide on whether they will keep it on their file or they will return it to you. Okay. But I'm sure Madame Powell is taking good notes of what you're saying at this time, and I hope immigration or the policemen will be able to trace your credit cards and the rest of your belongings.

A. Thank you, sir.

- Mr. Laniado, the evidence adduced during the course of today's admissibility hearing consisted of your sole testimony which reveals at first that you are a citizen of Israel by birth in that country on February 7th, 1979. You are not a Canadian citizen nor a permanent resident of Canada, and this is sufficient for me to conclude that you have no right to remain into country.

Now, you testified having entered Canada, on March 23rd, 2003, at Toronto. At that time you said, you told the examining immigration office at the Port of Entry that you were coming here as a tourist. You also said during the course of today's admissibility hearing that this was, as a matter of fact, the sole reason for your coming to Canada. You said it was the sole reason for your coming to

Canada when the question was asked of you.

A. Ah, to travel.

- Yeah.

A. Ah, yes.

- Now, you got arrested on the 12th of September 2003, and you have now admitted that you've been working in Canada as a supervisor. You're getting between two to three, or thirty-five-hundred a month, plus you have expenses that are being paid. That is your cell phone, accommodation, vehicles, fuel and all that kind of things. You never asked for nor obtained a working authorization.

You said that prior to your coming to Canada, you had seen ad in a newspaper in Israel and you called someone, met you in Tel Aviv and discussed what the work was all about. And because of your qualifications, it was determined that you would not act as a salesman door to door but you would rather supervise a team of salesmen. And you started working eight weeks after your arrival in Canada.

Having fully considered the evidence before me, I find, Mr. Laniado, that you are a person described in Paragraph 41(1)a) of the Immigration and Refugee Protection Act in that, on the balance of probabilities, there are grounds to believe you are a foreign national who is inadmissible for failing to comply with the Act through an act or an omission which contravenes directly or indirectly a provision of the Act, and that is the requirement of Section 30 sub (1) which states that you cannot work in Canada unless authorized to do so under the Act.

Now, there was another allegation to the effect that, on a balance of probabilities, you would be inadmissible for misrepresentation of a material fact. You said that when examined at the Port of Entry you told the immigration officer you were coming here in order to sightsee the country. And you answered Madame Powell's question by saying that this was the only reason why you had come here. However, when considering that prior to initiating your trip to Canada, you contacted someone who had put an ad in a newspaper about work in Canada. So to inquire about the details of that job, you even met with the person who, following discussions, has offered you to be a supervisor rather than selling paintings door to door. So I think in all likelihood you weren't only coming here to sightsee Canada, but you were coming here so to engage in employment as well. Maybe doing both at the same time. But you also had the intention of engaging in employment since you had already... you have already discussions prior to your coming to Canada about this kind of job.

So I find that the second allegation is also established on a balance of probabilities, and consequently I am hereby making an Exclusion Order against you. And this will mean that you will be removed from Canada. You will be called to leave, and you will be prohibited from coming back to Canada for two years.

A. For two years.

- For two years you can't come back. If you want to come back though, you may come back within that two year period of time, but you need to obtain the Canadian Immigration Minister's written consent which could be obtained any Canadian Embassy in any country where Canada has a delegation.

A. In how much time should I leave?

- This immigration will tell you how long they'll give you to make arrangements and leave the country. Okay.

Today's hearing is now terminated. I'll have you sign the order.

The transcripts of the deportation hearings of the art students are revealing. Former and well-educated former members of the Israeli military acted as if they never knew it was against the law to work in another country without a permit. There were references to an unnamed "boss" who lived in the United States and owners of the art selling operation who wanted to avoid run-ins with law enforcement. Perhaps the art students in Canada were merely unaware but couple the Canadian art operation with the American operation carried out just two years prior and a pattern of deception emerges. The motto of the Mossad is noteworthy when pointing to its foreign operations: "By way of deception, thou shalt do war."

There was an interesting postscript to the Israeli espionage activity in the United States before, during, and after 911. In December 2004, it was reported that a former senior U.S. government official, commenting on the FBI's raid of AIPAC's Washington offices, stated that in 2001 the FBI discovered a "massive" Israeli espionage operation on the East Coast, specifically including New York and New Jersey.[104] National Security Adviser Condoleezza Rice and her deputy Stephen Hadley were both briefed on the FBI investigation of Israeli espionage in the United States shortly after they took office in early 2001.[105] A Justice Department source confided that it was Attorney General John Ashcroft who personally ordered the investigation of the Israelis stopped in the months prior to 911 – a decision that proved fateful for the thousands of people who perished on September 11.

[1] Anna Werner, "Federal Buildings Could Be In Jeopardy - In Houston and Nationally; Government guards have found so-called students trying to get into secure buildings, KHOU-TV 11 News, October 1, 2001.

[2] Ibid.

[3] Brett Shipp, "News 8 Investigates 'Art Students,'" October 3, 2001.

[4] Neil Mackay, "Five Israelis were seen filming from the van on the right as jet liners ploughed into the Twin Towers on September 11, 2001. Were they part of a massive spy ring which shadowed the 911 hijackers and knew that al-Qaeda planned a devastating terrorist attack on the USA?" Sunday Herald, November 2, 2003, p. 1.

[5] Jim Galloway, "Innocent Israelis Caught Up in Arrests," Palm Beach Post, November 18, 2001, p. 21A.

[6] Information from East Rutherford Police Department.

[7] John Miller, "Five Israeli men arrested soon after 911 might have been working for Israeli intelligence, but likely did not know beforehand about the attacks," ABC News, 20/20, June 21, 2002.

[8] Confidential source, Larimore Associates.

[9] Confidential sources, Jersey City Police Department.

[10] "911 Tapes tell Horror of 9/11," WNBC-TV, June 17, 2002 <<http://www.wnbc.com/news/1315651/detail.html>>

[11] Management and residents of Liberty State Park Marina and personnel of Liberty State Park Water Taxi.

[12] Repeated phone calls, October 2004, with Liberty State Park and Department of Environmental Protection officials.

[13] East Rutherford Police information.

[14] Ibid.

[15] Paulo Lima, "Five Men Detained as Suspected Conspirators," The Record (Bergen County), September 12, 2001.

[16] Interviews with residents of "The Shades," the Weehawken neighborhood where Urban Moving Systems was located.

[17] Miller, op. cit.

[18] Lima, op. cit.

[19] Doug Saunders, "U.S. arrests of Israelis a mystery Most charged with immigration violations either have been deported or will be," Globe and Mail (Toronto), December 17, 2001, p. A7.

[20] Robert Rudolph, Kate Coscarelli, and Brian Donohue, "Evidence takes investigators through Wayne and Fort Lee," Newark Star-Ledger, September 15, 2001.

[21] Interviews of Union City and Weehawken witnesses to 911 attack, October 2004.

[22] "Car bomb found on George Washington Bridge," Jerusalem Post, September 12, 2001.

[23] Interviews in Jersey City, October 2004.

[24] Miller, op. cit.

[25] First Amended Complaint, filed September 14, 2004 U.S. District Court, Eastern District of New York, 04 Civ. 3950 (JG) (CP).

[26] Galloway, op. cit.

[27] John Miller, op. cit.

[28] Confidential information.

[29] Miller, op. cit.

[30] John Miller, op. cit.

[31] Marc Perelman, "Spy Rumors Fly on Gusts of Truth; Americans Probing Reports of Israeli Espionage," The Forward, March 15, 2002.

[32] John Miller, op. cit.

[33] Mackay, op. cit.

[34] <<http://www.ncix.gov/news/2001/mar01.html#a1>>

[35] Philip Shenon, "FBI and Ashcroft to Come under Fire," International Herald Tribune, April 6, 2004.

[36] Jim Stewart, "Ashcroft Flying High," CBS News, July 26, 2001.

[37] John Daly, "UPI Hears," June 13, 2005 < <http://washingtontimes.com/upi-breaking/20050613-102755-6408r.htm?>

[38] Edward Alden, "White House publicizes CIA briefing to Bush," Financial Times, April 11, 2004.

[39] A Roy Laniado surfaced as a team leader with regard to Israeli art students arrested in Canada in 2003. Roy Barak, a driver for Urban Moving Systems, was arrested on September 12, 2001 by police in Pennsylvania.

[40] Bob Holliday, "Fundamentalist link in cheap art scam?" Winnipeg Sun, August 8, 2004, p. 6; Paul Cowan, "Door-To-Door Scam 'Artists' Busted; Local Art Dealers Warn Of Cheap Reproductions," Edmonton Sun, August 8, 2004, p. 6.

[41] Carl Cameron, Fox Special Report with Brit Hume, December 13, 2001; Wayne Madsen, "Homeland Security, Homeland Profits," CorpWatch, December 21, 2004.

< <http://www.corpwatch.org/issues/PID.jsp?articleid=1108>>

[42] Administrator refers to Asa Hutchinson, the then DEA Administrator. He subsequently was named as the Deputy Secretary of Homeland Security under Secretary Tom Ridge.

[43] Swissinfo Web Site, "Swiss court begins hearing charges in case of Israeli secret agent," July 3, 2000.

[44] "Cyprus reportedly refuses to hand over suspected Mossad agents," Ma'ariv (Tel Aviv), December 29, 1998; Uzi Mahnaimi, "Mossad moves to re-open UK spy base," Sunday Times (London), April 5, 1998.

[45] "Israeli National Charged in Spy Case," Sun-Sentinel (Fort Lauderdale, FL), July 11, 1999.

[46] Noam Sharvit, "AMDOCS exec questioned in industrial espionage," Globes Online (Israel), May 31, 2005 <<http://www.globes.co.il/serveen/globes/docview.asp?did=919329&fid=942>>

[47] "Spyware espionage ring cracked; Israeli companies infiltrated by Trojans," Reuters, June 1,

2005.

[48] DEBKAF File Special Update, May 29, 2005; David Stringer, "Israel Extradition: Couple Remanded in Custody," The Scotsman, May 26, 2005.

[49] Patrick O'Connor and Jonathan E. Kaplan, "Wi Fi fight involves Abramoff," The Hill, March 3, 2005, p. 11.

[50] Ibid.

[51] Mary Jacoby, "Friends in high places; Sami Al-Arian isn't the only prominent Muslim leader who posed for chummy pictures with President Bush. Many conservative Republicans are uneasy at the way GOP power broker Grover Norquist curries support from the Muslim community," St. Petersburg Times, March 11, 2003.

[52] Michael Isikoff and Mark Hosenball, "Who, and What, Does He Know? New evidence suggests that a leading Muslim spokesman in the U.S. associated with terror suspects," Newsweek, October 1, 2003.

[53] Brian McWilliams, "Instant Messages To Israel Warned Of WTC Attack," Newsbytes, September 27, 2001.

[54] Confidential information from World Trade Center and New York-New Jersey Port Authority Police.

[55] Carl Cameron, Fox Special Report with Brit Hume, December 11, 2001.

[56] Gordon Thomas, "Bush: The Ignored Warning That Will Come to Haunt Him," Globe-Intel, May 21, 2002. <<http://www.gordonthomas.ie/104.html>>

[57] Doug Moe, "Israeli Spies Lurking in State?" The Capital Times, May 10, 2002, p. 2A.

[58] Randy Ellis, "Four Israelis deported after Tinker incident," Daily Oklahoman, March 8, 2002.

[59] UPI Hears, March 2, 2002. <<http://www.upi.com/view.cfm?StoryID=06032002-121706-8744r>>

[60] The 9:20 AM entry was an obvious typographic error and likely should have been 8:20 AM because at 8:46 AM, Flight 11 crashed into the North Tower of the World Trade Center. The shooting of Lewin at 8:20 AM was simultaneous to the time that Logan Airport flight control determined that Flight 11 had been hijacked. A gunshot report by the flight attendant may have contributed to that determination since all communications with the cockpit had ceased at around 8:15 AM. The FAA memo was prepared at 5:31 PM Eastern Daylight Time at the end of a working day when most of Washington's government employees had evacuated the city in panic and confusion; ABC News Prime Time Thursday, "Calm Before the Crash Flight 11 Crew Sent Key Details Before Hitting the Twin Towers," July 18, 2002. <http://abcnews.go.com/sections/primetime/DailyNews/primetime_flightattendants_020718.html>

[61] Under the Computer-Assisted Passenger Pre-Screening System (CAPPS), "selectee passengers" were those subject to additional security screening. A selectee passenger was identified based on a lack of knowledge about him or her, use of cash to pay for a ticket, and other parameters. While two women with common names, Adams and Miller, were "selected," the hijackers apparently boarded

Flight 93 without any arousal of suspicion.

[62] Saunders, op. cit.

[63] Jerry Markon, "FBI Tapped Talks About Possible Secrets," The Washington Post, June 3, 2005, p. A07.

[64] Cindy Gonzalez, "Mall kiosk probe ends in Israelis' deportation," Omaha World Herald, February 9, 2005, p. 5B; Cindy Gonzalez, "Mall kiosk probe ends in Israelis' deportation An Israeli man was accused of using illegal "tourist" workers," Omaha World-Herald, February 8, 2005, p. 5B.

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[Previous](#) | [Next](#)